

Congress 202: Washington, D.C.

FD's Congressional Procedure: Part 9



FIRE DISTINGUISHERS

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You know the meme about Hamilton writing 51 essays in 6 months? It must have been easier to write Constitution fan-fiction than whatever the fuck this is. Or maybe it's a dopamine thing. I need to change my relationship with my phone. Then again there was like nothing to do in the late 1700s, writing could be an all day activity back then in ways it just isn't today. Cannot relate in the slightest.

The District of Columbia isn't just the seat of our government as defined by the Constitution, it's also my home. Growing up in Lincoln Heights, taking the Metro to Banneker, and finally getting a job on the Hill, I remember the days of Councilman Gray, and then Mayor Gray, and then Councilman Gray again. Good times.

But did you know that despite advancements in home rule, DC is still subject to Congress in ways the States just aren't? Even if you did, do you know *how*?

I started writing this post in like April 2024. Never expected this would be so relevant. Back in January I realized it was too long to post on the sub directly without being chopped up, so instead I have to do this fucking thing. The mods said they were cool with it. Idk if I'll do that again. It feels like there used to be more effort posts on the forum. Dying art form. I like the February contest, but you used to see like two of them a week. Seriously, what the hell happened? There's more people on here than ever, what the hell are you lazy dicks not doing writing something for people to learn? Come on guys write something.

Either way, 202-224 is the beginning of every Senate phone number. 202-225 and 202-226 are all the House numbers I've seen. So, let's take a break from Committees and have "Congress 202" be about *the 202* so we can learn the answers to those questions.

There's no way that guy wrote 51 essays in 6 months. Right?

A Story of "If"

Before the Congress of the United States, there was the "United States in Congress Assembled" (aka the Congress of the Confederation, but they called themselves the "Continental Congress") organized under the Articles of Confederation. Please don't confuse these guys with the First Continental Congress (which existed for like a month in 1774) or the Second Continental Congress (which was the thing responsible for the country during most of the Revolutionary War), or even the Confederate States

Congress (which was the legislature of the Confederate States of America, organized under the, idiotically titled, “Constitution of the Confederate States”), all of which were all named this way because fuck you, and if any of you Europeans complain I’ll remind you that at least we abolished these things before giving them the same name. How the hell do you have a “Council of Europe” and a “European Council” *at the same time*???

Regardless.

Existing for about 8 years, the United States in Congress Assembled was a pretty haphazard organization. Its first convention didn’t even feature an election, they just reported over every single member of the Second Continental Congress and got to work. Samuel Huntington of Connecticut, who was President of the Second Continental Congress and presided over the body when the Articles of Confederation were signed, automatically got the job of the President of this thing, too. They really just wanted this thing to be “*The Continental Congress*” but with actual rules and structure, and not just a bunch of guys in a room deciding what they’re going to do about the British.

As a result, and among other issues, this institution was homeless. The US in Congress Assembled met in Philadelphia PA, but also in York PA, Princeton NJ, Annapolis MD, Trenton NJ, and New York City NY. To be fair, this transience was a double-edged sword, since the reason they had to move in the first place was in response to the Pennsylvania Mutiny of 1783 when a few hundred Revolutionary War vets showed up demanding payment for fighting in the war and **held the Members of Congress hostage while also refusing to allow them to achieve a quorum for debate, threatening violence and making a mess in the building**. Very famously in this incident, **the ultimate authority of the armed service who COULD stop the protesters was actually very much on the protesters’ side and didn’t do much to intervene**.

How does this keep happening?

So, overall, it was a good thing they could pack up and leave, but it would've been better if there was some inherent safety (or at least the ability to impose safety) in the meeting place to begin with (holy shit this didn't age well).

For the next 6 years, there was some debate in the Committee of the Whole on next steps. There was broad support for deciding a permanent residence of Congress, but location and other details needed to be resolved. Funny enough, Elbridge Gerry (of Gerrymandering fame) motioned as early as October 1783 that "buildings for the use of Congress be erected on the banks of the Delaware near Trenton, or of the Potomac near Georgetown, provided a suitable district can be procured on one of the rivers & aforesaid, for a federal town."

In short, when the framers drafted the new Constitution, they had to deal with this problem. Therefore, in Article 1 Section 8 Clause 17, Congress got the power "to exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the acceptance of Congress, become the Seat of the Government of the United States" (this is called plenary power, we'll come back to this).

Federalist 43 (written by Madison to the detriment of my joke from earlier) lays out justification for, among other things, why the new Country needed a Federal district in the first place. Madison says in essence:

The indispensable necessity of complete authority at the seat of government, carries its own evidence with it. It is a power exercised by every legislature of the Union, I might say of the world, by virtue of its general supremacy.

It's obvious why we need this.

Without it, not only the public authority might be insulted and its proceedings interrupted with impunity; but a dependence of the members of the general government on the State comprehending the seat of the government, for protect

in the exercise of their duty, might bring on the national councils an imputation of awe or influence, equally dishonorable to the government and dissatisfactory to the other members of the Confederacy.

It's not a great look when we need to depend on a single state's government to protect Federal business, like that one time from before...

This consideration has the more weight, as the gradual accumulation of public improvements at the stationary residence of the government would be both too great a public pledge to be left in the hands of a single State, and would create so many obstacles to a removal of the government, as still further to abridge its necessary independence.

Other essential government functions shouldn't be some single state's responsibility either.

The extent of this federal district is sufficiently circumscribed to satisfy every jealousy of an opposite nature.

Plus, our rules here are so great that nobody can be mad at us for making this thing because:

And as it is to be appropriated to this use with the consent of the State ceding it;

The state losing a few acres of land is giving it up willingly.

as the State will no doubt provide in the compact for the rights and the consent of the citizens inhabiting it;

And that state is just a reflection of its peoples' will, so the people are giving up the land willingly.

as the inhabitants will find sufficient inducements of interest to become willing parties to the cession;

And the people who live in the land being given up **will get so much out of this** that there's no doubt they'll be happy to have their land in the deal.

as they will have had their voice in the election of the government which is to exercise authority over them;

And it's not like we're taking away anybody's ability to influence the Federal government, which is part of the reason we're doing this whole "Constitution" thing in the first place.

as a municipal legislature for local purposes, derived from their own suffrages, will of course be allowed them;

And we're not taking away their ability to self-govern either, which is the other part why we're doing this whole "Constitution" thing in the first place.

and as the authority of the legislature of the State, and of the inhabitants of the ceded part of it, to concur in the cession, will be derived from the whole people of the State in their adoption of the Constitution, every imaginable objection seems to be obviated.

So yeah everybody has to be on board anyway or this wouldn't work, so if it works then how can somebody not have been on board?

At the end of the day, this wasn't the biggest deal in the new frame of government, **by the time the Constitution was ratified the question if there should be a Federal district was pretty much over,** and *how* the Federal district should be run was widely agreed upon being a problem for another time. Instead, people were mostly just interested in *where* they were gonna put this fucking thing.

Hence:

The Five Act Play

I'd argue it's 5 major pieces of legislation after the Constitution was signed that led my beloved District of Columbia of today:

1. The Residence Act of 1790
2. The Organic Act of 1801 (and all associated titles)
3. An Act to Retrocede the county of Alexandria, in the District of Columbia, to the State of Virginia ... of 1846
4. The Organic Act of 1871 (and all associated titles)
5. The District of Columbia Home Rule Act

The Residence Act: A Story of "Where"

Celebrities complain. Leaders legislate.

The question of where this new Federal district would be situated took over half a decade to answer. Even before the Constitution was ratified, people proposed the seat of government be in Kingston NY, Nottingham Township NJ, Reading PA, Germantown PA, Lancaster, PA, Williamsburg VA, New York City NY, Philadelphia PA, Annapolis MD, Wilmington DE, and Princeton NJ. After the Constitution was ratified, state legislatures from New York, New Jersey, Maryland, and Virginia all offered up territory for the new seat of government, but with the Constitution came Article 1 Section 8, and with Article 1 Section 8 came Congress as the arbiter of this problem.

The first Congress met in New York City, and really there were two contenders for national capital: a slice of the Potomac near Georgetown, and a slice of the Susquehanna near what's now Columbia PA. At first Pennsylvania was in the lead, but when the House approved the Susquehanna river site and the Senate threw up a wildcard plot of land on the Delaware river near Germantown PA, the bills stalled in reconciliation and the can was kicked down the road again.

See, by now the issue of the site of the national capital had devolved from a problem of policy to a problem of politics (as so many issues in American history have), becoming another battle in the war of urban vs rural, as a proxy for the even more grievous war of North vs South. Northern state legislatures all made the argument that the national capital should be a major city (and oops all of those just so happen to be in the North) while Southern states wanted a national capital closer in the South since that's where the agriculture was in this primarily agrarian country, and also so their slave-owning Representatives and Senators wouldn't need to spend as much time on the road (and thus away from their plantations; bastards).

The genius of Jefferson was on full display in how he put two federalists at the same dinner table to make himself look good. It's 1790 now, and Secretary Hamilton, having spent weeks begging Congress for a national financial plan (ideally one that fit his economic vision and included a national bank), was stuck there banging his head against the wall after two failed votes to deal with the problem of individual states still having debt from the Revolutionary War. The big imbalance here was that the Northern states had larger balances owed, and Hamilton wanted the Federal government to assume that debt so they could get on with the business of building an export economy.

On the other hand you had Southern states, who as a category had already paid off more of what they owed than Northern states, and who didn't want to be on the hook for those Northern states' debt. As a coalition, led by James Madison of Virginia, they threw every argument (to include arguments of constitutionality, which could be the first major question of government overreach for this new Republic) at the wall to make sure they weren't stuck with the bill, and coalesced in Congress to block the Hamilton plan from moving forward.

Enter the man who'd be our third President, stage left, with an invitation to dinner at his right hand. In a letter that Jefferson wrote to James Monroe, because he was just that proud of himself, he explains how he got Hamilton and Madison (who were a p

of the same faction at the time) to make a deal over the selection of a national capital site closer to the South, in exchange for the assumption of state debts. Granted, this was after a summer of informal meetings just like this one, but the ability to walk away from a meal with a deal cannot be understated (unless you're singing about it bro lil shut the fuck up *please*). Congress mostly agreed with the deal, with the Pennsylvania delegation of course lagging behind since they were the front runners in this race for while, so Hamilton had to convince the New York delegation to abstain from protesting Philadelphia's designation as temporary capital for 10 years.

And so, two bills passed instead of zero:

The Assumption Act of 1790, which established the foundation for public credit and let the Federal government assume the states' debts from the War, and which paved the way for the creation of the First Bank of the United States (we'll come back to that).

And the **Residence Act of 1790 (1 Stat. 130)**, which specified the national capital site would be on the Potomac River, between Connogchegue Creek and what we now call the Anacostia. President Washington (whose dick must've gotten to every room a minute before he did the way these guys in the early Republic *worshiped* him) had ultimate authority to pick a surveyor, appoint a three member commission to oversee the surveyor, pick an exact location of 10x10 miles square, and ensure that Congress and other government offices would have buildings for their use in 10 years' time (December 1st, 1800).

Now, see, here's the weird part. People lived on the Potomac before DC was demarcated. And it wasn't just the Piscataway whose plight is *still* ignored by the Department of Interior; Georgetown and Alexandria were right there where this thing could be lined up.

When the bill passed, Washington started scouting in Georgetown. This town, founded in Maryland, named after maybe George Gordon, or George Beall, or King George II (how the hell did 4 different guys named George have so much to do with

this place), was never outright required to land in the new federal district, but there was always an assumption since people had been talking about it being part of the capital site for like 7 years by this point. George (Washington) spoke with some property owners who said they'd sell their land to the government, spoke to some others who told him to fuck off, and then he decided he really needs a surveyor to figure out who owns what out here but that Georgetown was definitely a part of this new district.

By now it's 1791, and in come Daniel Carroll and Thomas Johnson and David Stuart (Washington's three-member commission), and Andrew Ellicott (Washington's surveyor). Washington thinks "Virginia seems neat, I'm from there, let's take some of them too," and has the team write up an official site selection for Congress on January 24th, which included a recommendation to amend the Residence Act so Alexandria could also be part of this new district. It took Congress a little over a month (lightning fast by today's standards), but by March 3rd, Washington got the authority to take some of Virginia (1 Stat. 214). He did NOT, however, get the authority to put federal buildings there, because he owned some land in that area and Congress still cared about corruption back then (the explicit language was a prohibition on the "erection of the public buildings otherwise than on the Maryland side of the river Potomac," which we'll come back to).

By March 30th, Washington issued a presidential proclamation that said "Jones' point on the upper cape of Hunting Creek in Virginia" will be the starting point for the boundary survey, and sprinkled in some details on how the survey would be done. Andrew Ellicott rounded up his brothers Benjamin and Joseph, as well as Isaac Roberdeau, Isaac Briggs, George Fenwick, and the astronomer Benjamin Banneker (Banneker High School fame) to do the required surveying and lay out a set of 40 boundary stones at or near every 1-mile-point along the edges of this square. Around this same time Pierre L'Enfant started working on his plan for the city, and marked places for what would be the Capitol and the White House. James Hoban was selected to design the White House, and William Thornton was selected for the Capitol.

Almost two years later, Ellicott submitted the final survey report to the commissioners, saying every stone was in place and included the topographical map that the surveyors had drawn, to include information on major roads, sites of interest and boundaries for the district all laid out by the L'Enfant plan. That same day, they named the place "Columbia."

And suddenly, DC had been carved out. But now back to that weird shit from before. People lived on the Potomac, in this square, and beyond just causing trouble and needing to be paid off if they felt they had their land being taken away (which did happen), you had a bunch of American citizens for the first time in this new country's history explicitly *not* living in a state. And the Constitution is way too vague, how the hell are you going to actually run the place that they live in now?

Which brings us to:

The Organic Act of 1801 (and all associated titles): A Story of "How

By 1800, the land had been carved out but the commission was still around, and Congress started debating how the hell they were going to run this place long term. No disrespect to Daniel Carroll, Thomas Johnson, or David Stuart, but what exactly this place? This problem was exacerbated by the fact that by November of that year (when this debate was happening), Congress was officially meeting in DC.

It takes them a few months but they come up with **The Organic Act of 1801 (2 Stat 103)**

The Organic Act of 1801 did a few things:

1. It established that the laws of Maryland and Virginia in the sections each state ceded to this new entity would remain in force in those respective sections as a baseline of law.
2. It established that Congress is now calling this place the "district of Columbia, and that it'll have two counties. There was one to the North and the East of the

Potomac, and includes all the islands in the river itself, to be called “the county Washington” (the guy must’ve needed a wheelbarrow), and there was one to the South and West of the Potomac to be called “the county of Alexandria.”

3. It established a Circuit court for the District, to include a chief judge and two assistants, as well as a marshal and a District Attorney. It also defined that the court would meet at certain times in Washington County and at other times in Alexandria County, and had criminal and civil jurisdiction. Further it establish a process for appointing justices of the peace and keeping a register of wills and judges of the orphans’ court.

And that’s basically it, most of this thing by volume sets up the District’s new judiciary, but since it was the first use of the plenary power discussed earlier regard something entirely within this new organization of geography, it opened the floodgates for creating a basis of law and execution within DC itself, to a degree of granularity unseen in most other statutes.

That’s fancy-fancy talk for these guys fucking WROTE.

In 1802 Congress incorporated a city within the district comprised of three wards, named it Washington (wheelbarrow), gave it a mayor appointed by the President, gave it a two-chamber city council of 12 members elected annually, set rules for council elections (including when the polls opened and closed), empowered the council to pass laws, levy taxes, and regulate city affairs, limited property taxes to three-quarters of one percent, and required the council to provide for the city’s “poor, infirm, and diseased,” (2 Stat. 195). But they included a sunset clause, which meant that in 1804 they had to extend that sunset date by 15 years, restructure the city council into two nine-member chambers, and empower the council to allow for things like establishing and regulating the inspection of flour, tobacco, salted provisions, to tax and license hawkers and peddlers, to regulate gambling, to preserve navigation of the Potomac “Anacosta” rivers, to license hackney coaches, ordinary keepers, retailers and ferries and pay the mayor a salary “as they may deem fit,” (2 Stat. 254). And while you’re

looking here, take a quick look at how they're also writing these same kinds of thing about Alexandria in the next statute (2 Stat. 255), since, again, that was one of the *tw* cities in DC at the time.

Over the next few years Congress would keep tweaking the way these cities are organized. In 1812 the city council was replaced by a board of aldermen and a board of common council, and for the mayor to be appointed jointly between these two boards (2 Stat. 721). In 1820 the mayorship became an elected position, and each ward of the city was assigned two aldermen and three councilors instead of the at-large situation from before (3 Stat. 583), and they loved this election idea so much that they added elections for a city collector, a register, a surveyor and an assessor in 1848 (9 Stat. 22

But then, the unthinkable happened.

Retrocession: A story of treason

Any discussion of the retrocession needs to start with the fact that a lot of this fight was caused, and exacerbated, by some of the most malicious racism in American history, perpetrated by both private individuals and public institutions in a state that valued the act of slavery, *beyond* simple economics. I'm going to mention a lot of players and their motives who seem to want out of DC in a way that resembles arguments about representation and enfranchisement today. But this isn't a story about home rule for the sake of enfranchisement; it's a fight over the right to vote *against* abolition. The "pro-democracy" crowd here were very much the bad guys and do not deserve our sympathy.

The legal fight over the retrocession is complicated by a lot of factors, though. Remember how Madison's justification for cession was that this was an act of the consent of all involved? Remember how Washington's point in even including Alexandria in the District's boundaries was almost entirely personal? Not everybody in Congress was ok with those things, and as early as 1803 you had proposals in the House and Senate to return this land to the states that handed it over. These weren't

that successful but they paved the way for local conversations about leaving the District.

By 1818, Alexandria actually got the ball rolling, with sections of the Alexandria county government (which were still in DC at the time, and subject to District law) voting in favor of retrocession and forming a committee to advocate for it. It wasn't just one guy's pet project either; local leaders like Thomson Francis Mason took charge of the movement, but when he called a town meeting in 1824 to drum up support, the resulting petition to Congress had 500 signatures from some incredibly prominent people. The reason for activity at all was a lack of self-governance in the District and the feeling that Congress was neglecting Alexandrian interests, but the reason for legal posturing was that similar initiatives in Georgetown led to a Washington mayoral system that kind of still lasts until today.

This was and wasn't just some local initiative either. Philip Doddridge, a member of the House of Representatives from Virginia, and chair of the Committee on the District of Columbia, asked the Alexandria Town Council if they would like their own delegate in Congress, if they'd like a local District legislature in the style of the state legislatures, or if they'd like to rejoin Virginia outright. On January 24, 1832, 437 people voted for no change, 402 voted for retrocession, and 1 voted each for a delegate or a District legislature, split pretty heavily between an urban core that wanted to remain in the District and a contingent of rural members that wanted back into Virginia. Three years later, the Common Council of Alexandria appointed a committee to represent the town before Congress, and they officially lobbied the House Committee on the District of Columbia to initiate a retrocession, but that didn't go anywhere.

See, at the same time (and more importantly) Congress was dealing with the issue of slavery. In 1807, after a 20-year Constitutional embargo on the effect of laws which would prohibit or regulate the importation of slaves, President Jefferson signed *The Act Prohibiting Importation of Slaves* (2 Stat. 426), outlawing the international slave trade.

As a result, activity within the domestic slave trade skyrocketed, as all of these poor human beings became unfortunately rare assets to a select group of reprehensible people. For a little over two decades, the debate was minimal, until the 1830s when people started pointing out that the third President's good intentions didn't exactly solve the problem. William Lloyd Garrison, his newspaper, and his political society had a significant impact on the Congressional debates of the coming years, among which important for our story here was the debate over abolishing slavery in DC.

In 1831, the very first article on the front page of the first issue of *The Liberator* (the abolitionist paper Garrison helped publish) was a complaint that the very seat of the Federal Government, which is "open to the daily inspection of foreign ambassadors and ostensibly opulent with the congregated wisdom, virtue, and intelligence of the land," is still "rotten with the plague" of slavery. Four years later, at the very first trial for sedition in the U.S., Reuben Crandall was jailed and tried in response to Crandall's dissemination of abolitionist materials in the city. A year after that, a three-day riot broke out after a mob of white mechanics destroyed a restaurant owned by a mixed-race Black man and turned their sights on the free Black population in the city, targeting the homes, establishments, and personal safety of people that the mob accused of "taking their jobs." If I had a nickel.

The inability for Congress to focus on this issue was simultaneously a local and a Federal problem that the existence of the District was supposed to alleviate. Unfortunately, it was the 1830s, and the country at the time was the United States. Individual members of Congress were incentivized to think about their positions as "ambassadors" of their state among a congregation of other states' "ambassadors," not as a part of *the* Federal government. The issues of the day also led to a legislature of divided attentions: Congress had just passed the Indian Removal Act, Florida was being integrated and settled, Texas had just rebelled from Mexico, Arkansas and Michigan joined the Union, and the wars of expansion were in full swing. Even if we just focus on the issue of slavery, this was the decade of Nat Turner's Rebellion in Virginia, the burning of Pennsylvania Hall in Philadelphia, and the capture of the

Amistad off the coast of Cuba and its eventual arrival in Long Island. People were focused on the big picture of slavery, whether their state could keep it around, and if there was going to be another revolt somewhere; the District was just some place where slavery *might* happen.

And then there was the issue of the banks. If you thought Americans today are unreasonable libertarians who think the Government switching the font on passports is a violation of their rights, the Americans of the 1840s were a different *species* of ignorant. Political parties suck, but the death of Hamilton and the collapse of his Federalists after the War of 1812 left an ideological pit in the second party system where nobody was actively trying to ensure the Federal government was capable of *running a country*. Basic shit, like making sure the national currency wasn't worthless or making sure people could get a loan without having to know a guy who knew a guy or make sure that the state of New York wouldn't just go fucking bankrupt overnight. All went out the window in 1836 when Andrew Jackson vetoed a bill to extend the Second Bank of the United States' charter. See, as far back as 1824, Jackson ran for Presidency on being **distrustful of elites**, and a **champion of small government** who saw the Second Bank as a political and corrupt institution that his opponents used **reward people who'd help them win their elections**.

Under Pennsylvania state law the Second Bank moved under a state charter, and despite the fact that not having a national bank *absolutely* caused the Panic of 1837, Democratic-Republicans didn't do shit and the Second bank's financial difficulties led to a suspension of payments for *two years*. Shit, even when Jackson's Democrats were finally out of power and a Whigs had a trifecta, Congress tried recharter the institution, which John Tyler vetoed, leading to the most violent riot on White House grounds in U.S. history.

But remember how this was a post about DC? See that's how easy it is to stop think about the place when there's bigger things going on, which is exactly what Congress did. Unlike Pennsylvania which could charter a bank separately from the federal

government because it was a state, the banks in DC required a charter from Congress. And in 1840, when the Alexandria's banks' charters were expiring, and when the Jacksonian Dems were still in control of both chambers, the Jacksonians weren't able to help out the locals and enact new charters when half of their entire political identity was "we don't charter banks." So: the banks in Alexandria ceased operations in July that year. At a town meeting that same month, the attendees unanimously chose to begin pursuing retrocession. It all kind of makes sense.

Then there's the issue of infrastructure. At a time when the easiest way to move freight was over water, being between two natural rivers and building some canals are an inherent built advantage, but go South of the Potomac and things aren't as easy. Washington City also got an early rail connection to the B&O, meaning they had trains coming in from Baltimore in the 1830s which wouldn't cross into Alexandria for another 40 years. Alexandria was also late to the Canal game, Washington City had a major one as early as 1815, and the extremely important C&O canal started construction and operation in the 1820s, but Alexandria not only had to finance their own project just to get *some* access, they started digging late in 1836 and finished late in 1843.

Ok, so with all in mind that let's do a thought exercise. Imagine you're a prominent Alexandrian in 1846. Your city had to shoulder a huge bill to fund this major public works project just to stay relevant, that you're still paying for. And because of some recent floods, that project needs major repairs, all while the Federal government is getting stingy with funding again. Congress refused to charter your bank 6 years ago meaning you're still rebuilding your credit relationship with some new fucking people because Andrew Jackson said something about "the big banks" a decade prior. Oh, your only valuable assets are slaves (you sick fuck), and random members of the House from states that didn't fucking exist 20 minutes ago (and also Massachusetts) bring a bill every year to make it illegal for you to own them in DC, or sell them, which is the only way you can still make a living (you God-forsaken animal).

Now, I'm not saying retrocession was the right thing to do ... but everybody has to admit that we see how *they* thought it was the right thing to do. And by "they" I mean Lewis McKenzie, a small-time shipping magnate and future Unionist mayor of the City of Alexandria, who was sick of the corporate taxes required to fund the canal just for his own business to stay relevant. He was a member of the Alexandria Common Council at the time, and petitioned the council that the mayor's office be tasked to take the results of the 1840 retrocession vote back to Congress, and also to the Virginia General Assembly. The motion passed unanimously on January 8th, 1846. And when the State of Virginia got involved it was all downhill.

Virginia asked that two representatives from Alexandria come to Richmond to discuss terms of retrocession, and within a month on February 2nd, 1846, the Virginia legislature unanimously passed an act to accept the retrocession pending Congressional approval.

When Congress got the news, Alexandria town leadership was meeting with the House District Committee about two issues: the retrocession itself and relief from the debt of financing the Canal without a solid set of financial institutions (again, because of Congress). This stalled things because while most Members of Congress didn't care about DC's exact borders, they *would* care about spending a bunch of money, and things stopped until the House itself decided to decouple the issues. On February 1st the Committee adopted a resolution to study retrocession, and by February 22nd the Committee sent a bill to the House floor to initiate a formal vote on the retrocession itself. The House debated the bill in May of 1846, and in comes our titular **Act To retrocede the county of Alexandria, in the District of Columbia, to the State of Virginia** (9 Stat. 35), to which there were three major amendments:

1. To allow the free Black population of Alexandria to vote in the retrocession referendum (this failed)
2. To make the vote in the retrocession referendum District-wide (this also failed)

3. And to *prevent* Congress from paying Alexandria's canal debts (passed with flying colors, because look at Congress' priorities)

The bill passed by a vote of 95-65.

When the bill moved chambers, the anti-retrocession crowd realized things were serious this time, and started trying to drum up support. This coalition was mostly groups:

1. people who didn't actually care about retrocession and just wanted relief from canal debts (who weren't getting it now),
2. the free Black population who didn't want to be subject to Virginia's even-then draconian laws which limited their physical movement as well as their property rights, far beyond what DC required of them, and,
3. the Washington City Board of Aldermen and Common council, and their supporters, who saw this as "a violation of the integrity of the District" and who also probably didn't want to split the tax revenue from bridges over the Potomac with arguably the most powerful state government in the Union, which could bully them into taking a bad deal.

Didn't matter. The Senate passed the bill on July 2nd 1846, and President Polk signed it into law a week later.

The referendum was held September 1st and 2nd, and the votes were staggeringly in favor of retrocession (763 vs 222) even if residents of the county outside of the city were staggeringly opposed (106 vs 29). Polk certified the results and issued a proclamation of transfer on September 7th 1846 and over the next few months Virginia slowly started accepting the legal transfer (finalizing it on March 13th, 1847).

Now there's a very interesting legal argument to be made here (by people much smarter than me) that everything I discussed in those last ~8 paragraphs was unconstitutional. No lesser supporter for this could be found than the only President

to have also been a Justice of the Supreme Court: William Howard Taft. See, the Contract Clause of Article I Section 10 says that “**No State shall** enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; **pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts,** or grant any Title of Nobility.”

Taft’s argument in 1909 (admittedly spurred by the geographical issues of not having enough usable space above the Potomac for Federal buildings, but legally sound regardless) was that passing an act to accept retrocession, *especially* before Congress approved it (but that’s a separate, additive, legal issue), was a blatant violation of the original contract established in 1789 under Virginia’s own bill of cession, where they wrote that the portion which Congress selected would be “**forever ceded and relinquished to the Congress and the Government of the United States, in full and absolute right and exclusive jurisdiction.**”

Is *that* kind of problematic? Yeah. Virginia wanted to ensure that Congress wouldn’t move the Federal District to screw over the Southern states, but they kind of painted themselves into a corner by writing that. The clean solution would require amending the Constitution, which wasn’t as monumental of a task at the time (just look at how we passed 4 amendments in the 7 years between 1913-1920). The dirty solution would require someone making an explicit judicial ruling empowering Congress to override State contractual obligations, which wasn’t ideal but at least would have made sense. But neither of those happened, and we just rinsed our hands of this thing.

Now there were a lot of people who wanted to undo this before Taft. Lincoln made a point of reestablishing the original District borders in his first State of the Union address in 1861; Senator Benjamin Wade introduced legislation to repeal the retrocession in 1866 because everyone was convinced after the war that Lincoln made a good argument; residents of Alexandria tried a few times to get away from Virginia in the 1870s-1900s; even James McMillan (chair of the House District Committee) tried

to force the Attorney General to file suit over the retrocession's constitutionality in 1902. Taft personally believed in the issue too, he fought for it for the entirety of his 1909-1913 term, but by the time he was trying to challenge the thing judicially and legislatively, he was already on his way out of the White House.

So, was the retrocession constitutional?

No. But that's ok, **constitutionality is whatever we want it to be.**

But, was the retrocession a good thing?

No.

In its later implementation, ceding this land back to Virginia allowed what are now called Arlington and Alexandria to prosper economically off their proximity to Federal institutions, all while the tax revenues from income, property, and the sales of goods within those jurisdictions don't go toward the public services of the place where the Federal government actually exists. To this day, businesses that are only around because of what's on the other side of the Potomac, pay almost nothing to ensure that the other side of the Potomac is clean, safe, healthy, or educated. The major exception is when the local governments take part in some of the most byzantine tax policy arrangements I've ever seen, most notably when it comes to funding transportation initiatives between these two jurisdictions. And WMATA's a fucking mess, but hey, Maryland deserves a lot of that blame too, if not more.

More importantly for us in this context, though, is that in its early implementation, retroceding this land back to Virginia allowed the Alexandria slave markets to persist for 14 years past the Compromise of 1850 (which outlawed the slave trade in the District). One of the reasons it took so long for me to write this was that it was so fucking difficult to find the exact number of people sold within this 14 year period, I can say it's beyond triple digits. In fact, the Compromise of 1850 validated in a lot of Alexandrians' minds that retrocession *was* necessary. What was once just a theory

about how much worse off Alexandrian citizens *could* be if Congress banned the slave trade actually materialized.

I want my contempt for this to come through: almost an entire extra generation of people were **livestock** because Congress handed this place back to Virginia.

And then there was this whole **war thing**?

The Organic Act of 1871: A story of "maybe"

The Civil War changed everything. Fuck injuries, 2% of the population *DIED*. "Oh 2 doesn't seem like that much," but think about it like this: if it had happened today the death count would be 6 million. 58,000 Americans died in Vietnam. About 420,000 in World War 2. Our best estimates say COVID killed around 1.1 million. It's fucking unreasonable to understand the scale of this war. And what's weird is that it was even more unreasonable at the time. More soldiers died in one battle (Gettysburg) than in the entire Revolutionary War and War of 1812 **combined**. The American citizen had never (and likely, God willing, will never again) see a society-level shake up of that scale when considering deaths alone, let alone injuries, impact to infrastructure, population dynamics, or the aftermath of incredibly broad legal reforms.

Among those changes, though, was the fact that officers and employees of the United States Federal Government started living in DC year-round. This began mostly with military personnel, where after the failed Peace Congress of 1861, thousands of volunteers rushed into the city from the North to reinforce the few hundred marine and soldiers that protected a city that acted like a ghost town for an entire season every year. After the First Battle of Bull Run, and the Lincoln Cabinet's realization that the War would likely last years, Washington City became a staging area for the entire Bull Run Campaign, and the permanent home of the famed Army of the Potomac.

But you can't just get a bunch of guys together and call that an Army. The arrival of soldiers meant the widening of roads, the creation of supply depots and warehouses, and eventually even factories (a few of which are still around), new bridges for

supplies, new Forts that we named our neighborhoods after, new hospitals that stood where we have a few parks today, and eventually a new aqueduct, all of which were to be constantly administered to by a cadre of civil servants in the biggest middle finger to the Jacksonian ideal, at the best possible time no less.

Suddenly DC wasn't a boom town where everybody went home in July or August when Congress recessed; the **1860 Census** counted 75,080 people in the city, but the **1870 Census** counted 131,700. Oh and notice how that 1860 already includes the slaves, so that's 56,620 NEW residents.

But speaking of slaves, what happened to them? Well, it wasn't just the 13th amendment that freed them in DC. Lincoln himself long wanted to end slavery in the District, but after the retrocession it looked like that might risk pushing Washington County and Washington City into the hands of Maryland (the other pesky slave state on the Potomac). In **1849**, seeking to solve both problems, the then-Congressman proposed a bill to balance the concerns of the Maryland Congressional Delegation (on one hand, DC slave-owners on the other, all while doing the objectively correct thing in (oh I don't know) emancipating his fellow human beings. It went nowhere.

But then suddenly, in 1861, after the departure of the Senators and Representatives from the seceding states, Henry Wilson of Massachusetts introduced **An Act for the Release of certain Persons held to Service or Labor in the District of Columbia (12 Stat. 376)**, which would immediately end slavery in the District, but (out of Lincoln's the Army's still well-founded fear that quickly punishing slave owners that remained loyal to the Union could cause Maryland to reconsider its tenuous decision to not secede) also create an Emancipation Commission which would financially compensate loyal slave owners impacted by the law. President Lincoln signed the act 4 days after the one-year anniversary of the start of the Civil War on April 16, 1862.

Turns out that infrastructure and trying to provide for all those people isn't cheap. Even less so when you want to actually *take care* of newly enfranchised people who've spent their entire lives as other peoples' property, and now have the opportunity an

the burden of being in control of their own futures. In fact, that was the exact problem that Sayles Jenks Bowen had on his hands in 1868 when the Republicans nominated him to run against John T. Given in the Washington City Mayoral race. Spurred to maintaining Washington's status as the seat of Government, the Bowen coalition was 1/2 Washingtonians who wanted to see the federal government (and all the associated jobs) stay, and 1/2 the newly enfranchised black population who saw Bowen as an ally.

And what a fucking guy. Mayor Bowen was leaps and bounds ahead of even the staunchest Radical Republicans, working to completely integrate DC schools in 1868 and putting up his own money to create private schools for black children when the integration plan didn't work out and the city's fiscal reserves were exhausted.

Unfortunately, all his attention on civil rights didn't exactly solve the problems that the first half of his coalition wanted solved, and aside from using some remaining funds to pave parts of [K St](#), [Vermont Ave](#), and [Pennsylvania Ave](#), Washington City entered into the census period with practically no new infrastructure, and completely broke.

Ok. It's 1870. The District of Columbia population is up 75% in a decade, and those people stick around all year. Most of them aren't in Washington City or Georgetown; those places are way too filthy with all the dirt roads and the sewage problems (read the mud was dirt and shit not dirt and water); Washington COUNTY's population is double what it was just 10 years ago. Oh and remember how the Organic Act of 1800 just kind of glossed over the whole "Washington County" thing? Turns out Congress was just throwing shit at the wall. Washington County's "government" was the same Congress they had no representation in, and council of Justices of the Peace organized under the original Organic Act who served as a Levy Court (the number would change like every 5 years) appointed by the President, that entirely enforced the laws of Maryland, because fuck it why let them have their own laws, they don't have a legislature!

Remember the whole “as they will have had their voice in the election of the government which is to exercise authority over them” that James Madison said? Neither did Congress.

So, after 70 years of this bullshit, Congress (under strong direction from President Grant to make sure all that public investment didn't go to waste by moving the capitol thought “why are we doing this?” FINALLY, introducing the **Organic Act of 1871** 1 Stat. 419.

This bad boy can fit so many fucking government reforms in it. Notable features include:

1. The complete political unification of the District of Columbia, and the official creation of a municipal government that would extend to its total limits.
2. The creation of a “**governor**” for such a municipality, appointed by the President with the advice and consent of the Senate.
3. Qualifications for the governorship.
4. Powers and duties of the governor, including a veto power.
5. The creation of a “secretary” for such a municipality, appointed by the President with the advice and consent of the Senate.
6. Responsibilities for the secretary, mostly involving the recording of laws, and serving as the first in the governor's line of succession.
7. **The creation of a bi-cameral legislative assembly:** a City Council of 11 members two from Georgetown, two from outside the old Washington/Georgetown boundaries, and the rest from the former City of Washington, appointed by the President with the advice and consent of the Senate; and a House of Delegates 22 members that are apportioned into 11 districts for the purposes of general popular election.

8. Rules for the election of the Delegates, to include the first election and the definitions of who can vote in any election.
9. The ability for the legislature to break up sections of what was formerly known “Washington County” into townships.
10. An oath of office.
11. Rules of procedure within the legislature, to include rules as minute as floor rule and as grand as rules of appropriations from the municipal treasury.
12. Salaries for municipal employees.
13. Restrictions on the assembly, **to include certain restrictions on taking out municipal debts.**
14. Rules on taxation.
15. Requirements to maintain infrastructure and public schools.
16. New judges appointed by the assembly, their judicial responsibilities and court procedures.
17. A Board of Health, appointed by the President with the Advice and Consent of Senate.
18. A register of wills.
19. An Attorney and a Marshal that will exist under the old rules from like the 1820s until Congress gets around to changing it (that’s really in there I swear).
20. The ability for the city’s legislature to charter corporations (FUCKING FINAL).
21. **A board of public works as a completely separate branch of government from the legislature or the governorship**, to include the governor, and four other people appointed by the President with the advice and consent of the Senate (one of whom must be a civil engineer, one of whom will be a resident of Georgetown, one of whom will be from the area outside Washington City and Georgetown), as well as responsibilities for this board.

22. A split between how the Presidential appointees and other municipal officials : paid (the former are paid for by the federal government, the rest by the municipality).
23. Penalties for voting illegally.
24. And last but not fucking least, **the complete and utter abolition of the charter (and by extension separate autonomy) of the cities of Washington and Georgetown on June 1st 1871.**

Woah woah woah. District-wide popular elections for delegates that had control of taxing and spending, some of which are outside the review of the Congress? A board of public works that exists outside the control of both the city government and the Congress?? In the 1870s??? What the fuck happened to that???

Alexander Robey Shepherd happened. A political boss from Southwest, and a real estate magnate in the city, Shepherd was one of the leading voices, if not the actual conductor, in the unification from the very start, integral to the final text of the Organic Act of 1871, and most people's guess as to who would end up Governor of the District of Columbia. Unfortunately, there was one problem: Shepherd's opponent for the governorship, Georgetown-based hero of the civil war Col. Jason Magruder. But comes President Grant, still with the singular mission of not moving the seat of government to St. Louis, not interested in stoking divisions between a wealthy (and white) Georgetown contingent that just lost their independence from their neighbors and the poorer (and blacker) (and much more populated) Washington City contingent.

Grant didn't want either of these guys to take the governorship because he thought appointing one would mean alienating either the Washington or Georgetown faction in this newly-unified city. So, despite Shepherd's machine, Grant appointed his personal friend Henry Cooke to the governorship, but he gave Shepherd the consolation prize as vice-chair of the city's board of public works.

That was more than a consolation prize, though. Henry Cooke was a financier, president of First National Bank of DC, and the younger brother of America's first investment banker Jay Cooke (who bankrolled the Union's war effort), not a politician. Shepherd immediately turned him into a friend, and then into an ally. For his part, Shepherd was in a position that let him order infrastructure overhauls, award contracts, borrow millions from private credit institutions and from the public by issuing bonds, and operate without legislative input or public accountability. Seriously, aside from the one member, the board was *completely* separate from the legislature and the governor's office prevented another "Bowen spent all the road money on black children's education" situation (a great problem to have, I guess). And Cooke I can't find a record that he even attended the board's meetings (maybe even because Shepherd told him not to), meaning V.C. Shepherd got to run the thing *carte blanche*.

You have to admit some success though. Unlike the four streets that Bowen retrofitted, DC in the Cooke-Shepherd days got the paved streets, and new sewers, gas lines, and gas lamps, and streetcars, and regular maintenance for all of the above *and* a revamped public school system that came SO close to integration (eat your heart out Bowen).

This is the **Washington of 1851**. See that fucking waterway that cuts through the city right beneath the White House? Notice how most of the national mall is completely covered by water? In just a few years this guy Shepherd (and the Army Corps of Engineers at the direction of Congress) *invented* Constitution Avenue. We used to be able to fucking build in this country, like come on.

So it's no wonder that just two years later (a little less than halfway through the territory with Cooke, (like any decent politician) hated by the mouth-breathing public who just wanted a race war, resigning, Grant promoted Shepherd to the governorship.

Now we're really in business. Remember, the governor at this point was both the "commission[er] of all officers who shall be elected or appointed to office under the laws of said District enacted as aforesaid," and responsible for "tak[ing] care that th

laws be faithfully executed,” armed with a veto power and powers of pardon and respite to boot, but ALSO STILL the head city’s board of public works (this time the full chair). This was the consolidation of Shepherd’s power here.

You guys need to read about half the shit this guy did, **either just as a person, or as a fighter for civil rights**. He was instrumental in enfranchising the city’s black population, he’s alleged to have supported women’s suffrage, and he was even on the war path to getting DC represented in Congress.

But if Icarus flew too close to the Sun, then Shepherd flew into it. The city government had already been under investigation by Congress a few times, but now you’ve got a guy in office who can’t stop spending even when the entire country is running out of money. \$6M in construction bonds ballooned to \$9M. Shepherd lost most of his personal fortune in the panic of 1873. Shepherd bullied the city council into raising taxes to pay for flattening the roads. Then suddenly there’s a petition by DC residents that made it to the Committee on the District of Columbia asking Congress to audit the city government, saying the city is \$13M in debt while residents are selling part of their property just to pay their taxes? Firestorm. Congress pulled the plug and declared the District was bankrupt.

Whether or not Shepherd ever did anything corrupt is still a historical debate. Congress, sick of his shit, adversarially alleged that he gave preferential treatment to spending in neighborhoods that he had financial interests in (remember, his original business was real estate). But it’s not entirely clear if that’s true or if that’s just the way they could blame someone for DC’s financial problems. Shepherd didn’t break any laws, he served no jail time, but he was a scapegoat to somebody.

Now here’s the question, would DC be DC without this guy? Absolutely not. There’s a relatively high chance that, even with the whole bankrupting the city thing, Shepherd is almost single-handedly the reason the seat of government didn’t move to St. Louis. The McMillan plan wouldn’t exist if not for this guy. Neither would the old streetcar or Union Station.

But he still fucked up. So badly, in fact, that Congress really thought “there’s no way we’re letting a single person have all that power.” So, after removing Shepherd from office (he only served in the governor’s office for 9 months), on June 20, 1874 Congress passed **An act for the government of the District of Columbia, and for other purposes** 18 Stat. C116.

Just like that, the city government was entirely abolished, and the Governor was replaced with a three person commission appointed by the President and confirmed by the Senate, officially turning the clock back to 1790. Grant’s first appointment? Shepherd. The Senate’s business that *same day*? Rejecting Shepherd.

Now, it was only supposed to be temporary, but Congress quietly removed the sunset date 4 years later. This board of commissioners oversaw the dismantling of every business and service the city ran on its own. And the board couldn’t do anything without Congressional approval, so every idea, proposal, tax increase, and matter for consideration always required a vote in both Chambers.

And that’s how it was for 99 years.

But first, the orchestra’s been on for a bit, let’s take a quick break to talk about something important.

Intermission: the first McMillan, the first Black city, and the first American Century

1870 to 1970 was way more eventful in American history than 1770 to 1870. “Oh but the revolutionary war!” “Oh but the civil war!” “Oh but some third thing that only reddit cares about but cares about a lot for some reason!” The United States became the center of the universe in that second century, shut the fuck up.

But what does that mean for DC? Contrast the rise of the United States to global prominence between the 1880s and the 1920s with the situation in DC at the time. Perfect example: remember how the population of DC doubled in the 1860s, largely

driven by the presence of multiple large armies and associated logistics? Ever notice how two of the most common things in small towns around military bases are strip clubs and payday loan shops? Have you ever thought “Huh, that [Joe Hooker \(pun with the work of God\)](#), General of the Army of the Potomac, sure seems to love disreputable things, but isn’t fond of the idea of those things spreading all throughout the city”?

Put all of those things together, literally in between the White House and the Capitol and you’ve got **Murder Bay** (also known as Hooker’s Division).

This place was crazy, here’s a description in the Washington Post c. July 8th, 1888, retrieved by [Ghosts of DC in 2012 who wrote up a great piece on the place](#).

Then the streets were unpaved, except certain of the principal thoroughfares; the houses were for the most part mean and straggling, while the moral atmosphere was almost in accord with the condition of the town itself. Gambling establishments, some of the highest order, and descending by gradations to dens of the lowest character, where life itself was frequently sacrificed on the turning of card. Thieves and unprincipled men and women, as ready to cut a throat as pick a pocket, flourished and walked the streets in certain sections in open daylight, while at night they frequented the haunts of vice and selected their victims from among the unsophisticated without fear of law or justice. In those sections it was unsafe for any one with the slightest appearance of respectability to enter after nightfall. There were, of course, the respectable sections, and numbers of people lived here and mingled in society who knew little or nothing of the darker localities, except they were brought to their attention through the newspapers; but to the people who saw down-town life, as it may be termed, after the town was buried in darkness, except for the straggling rays from dim street lamps or the light from the saloons and gambling places, Washington was a wild and weird place.

Real Jack the Ripper shit.

Unfortunately that wasn't the only place depicted negatively in the Post in the 1880s or in the 1890s. And then in December 1900 the American Institute of Architects had a meeting in the city where they pretty much spent the entire time talking about how shitty the city was and how they could fix it. So between the 1893 World's Fair showing people what centrally planned urban environments could look like, the City Beautiful movement pushing the idea that maybe people shouldn't live in squalor just because they need to be in a dense environment, and the Progressives (real Progressives, not the fucking influencers in Congress that haven't made anyone's lives better) pushing for, you know, progress, a captivated Daniel Burnham and Fred Olmsted Jr. and the United States Senate created a commission to actually implement the rest of the L'Enfant Plan.

With revisions, this new plan, issued in 1902 named after **Senator James McMillan** of **Michigan**, envisioned creating a National Mall flanked by museums, offices around Lafayette Square and the Capitol for the government, and a significant clean up for neighborhoods around that area. Teddy Roosevelt attended an exhibit where the commission's plan was on literal display, and Congress was finally buzzing with excitement over doing something good for the city.

And also not. See the Speaker of the House, the legendary Joseph Cannon, hated the fact that the Senate went behind the House's back to create this commission in the first place, so a political fight started brewing over how ambitiously this thing could be implemented.

It's 1902. Congress passes legislation to authorize the construction of Union Station, a major part of the McMillan plan. Detractors immediately start lobbying the Pennsylvania Railroad to protest over losing some railroad track.

It's 1903. Congress passes legislation to reimburse the Pennsylvania Railroad for relocating its tracks. Detractors try and focus on everything West of the Capitol building.

It's 1904. The Department of Agriculture submits plans for a new building on the south side of the Mall that ignores the McMillan Plan's setback rules. Advocates of Plan push back, insisting on a 300-foot setback to preserve the Mall's open vistas.

It's 1905. President Roosevelt approves the Agriculture Building's siting in line with the Smithsonian—violating the McMillan Plan, albeit unknowingly. Plan supporter scramble to reverse the decision, leading to a prolonged fight over the building's height and footprint.

It's 1908. The new Agriculture Building is completed according to McMillan Plan specifications: it's placed at the proper setback and sunk partially underground to compensate for its height. Detractors (the Trump Administration, over 100 years later mind you) try and destroy this landmark by gutting the USDA.

It's 1910. Congress establishes the Lincoln Memorial Commission to decide on the location of the Lincoln Memorial. Meanwhile, President Roosevelt (before leaving office) creates a temporary arts commission. President Taft dissolves it, replacing it with a permanent Commission of Fine Arts (CFA). Detractors pack the Lincoln Memorial Commission to delay selection of a site.

It's 1911. The Lincoln Memorial Commission, stuck in gridlock over the memorial's location, is largely supplanted by the functioning CFA. Together (barely), they endow West Potomac Park, a core McMillan Plan location. Opponents of the site cite marsh conditions and distance, but are overruled.

It's 1913. President Wilson, for all the good he might do internationally, segregates the Federal Government. His coalition in Congress does the same for a lot of public services in DC, including in DC's schools. For the first time in almost 70 years, and despite having a much higher-than-average Black population because of its proximity to the South and its relatively strong protection of Black Americans up until this point, DC's Black residents are legally second-class citizens. A population that relied on federal hiring becomes economically disenfranchised. Populations in slums skyrocket.

It's 1915. The Federal Government is buying up land in Murder Bay, and kicking people out of the area, laying groundwork for future development. Walter Washington is born.

So things are tough, but the population won't stop fucking growing, and wouldn't stop growing until the 1950s. And the World Wars only exacerbated all that. Remember when 1870's 131,700 people number turned DC into a proper city and not just a boo town? It was 486,869 residents in the 1930 census, and it peaked in 1950 with 802,177 residents.

Do you also remember how way back in the earlier sections of the post when we talked about how there was a "Washington City" and a "Washington County"? The reason Florida Ave used to be called "Boundary Street" in the old L'Enfant Plan becomes much more apparent when [looking at a map of the city's topography and elevation](#). In the early 1900s, most people walk everywhere they need to go, and that means being crammed into this smaller plot of land than you might expect "such District (not exceeding ten Miles square)" minus treason to equal.

What am I saying here? It's cramped as shit! Getting rid of Murder Bay and replacing it with the Hoover Building (beautiful place, by the way) didn't renew anything beyond the Hoover Building. There's two great sources on this courtesy of [Whose Downtown](#) and [HillRag](#), describing a broader and more pervasive density than in other American cities. While accounts today do some justice in describing the vibrancy of some of these communities, sources at the time (like the Washington Post) describe the negatives that come with this kind of living, specifically as it relates to both fire safety and disease outbreaks in the lead-up to the deadliest pandemic in human history with the Spanish Flu broke out.

Congress saw hundreds of streets, blocks, and neighborhoods like this as unsafe for their own dwellers at best, or unsafe for government transplants as hotbeds of crime and disease at worst. And it's the early 1900s, urban renewal just means displacement. Kick them out, build some pretty shit; very straightforward. Sure, that's kinda fucked

up, but what takes it from kinda fucked up to evil is when you have Congress and President Wilson refusing to do shit to stop or discipline US Servicemembers from taking part in the Washington Race Riot of 1919 (which the Washington Post 10000000% caused by the way) that burned down hundreds of homes, or when you have Members of Congress joining the second Ku Klux Klan and talking about how DC really needs to do something about all those Black people.

But ok, Congress is a diverse place, the Presidency changes hands, and DC doesn't have any say in the matter without membership in the first or the right to vote in elections for the second. And those urban renewal plans are happening, there's nobody really objecting to the McMillan plan and building new offices in Murder Bay where FDR's making a new federal agency every 20 minutes. And as a matter of fact, if the solution to all of America's problems are "let's make a new agency" (which is true, by the way, don't tell the libertarians), why don't we make an agency to fix this whole slum problem?

So that's what they did. Enter stage left: **48 Stat. 930, AN ACT To provide for the discontinuance of the use as dwellings of buildings situated in alleys in the District of Columbia, and for the replatting and development of squares containing inhabited alleys, in the interest of public health, comfort, morals, safety, and welfare and for other purposes (aka the District of Columbia Alley Dwelling Act).**

Spurred by the actions of Eleanor Roosevelt, who we all have to admit is probably one of the greatest Americans of all time, the Alley Dwelling Act created the "Alley Dwelling Authority" though it flipped between this name and the "National Capital Housing Authority" (NCHA), so people (and the Act for that matter) just call it "the Authority." This was a group of people who would buy the properties in these alleys, improve the land, take out loans or amass capital from lease or sale for those purposes and lease or sell the newly improved property to people or companies in the District.

But see that doesn't actually solve the problem of displacement, it just creates an arena for arguing over whether displacement should happen. On one side, you had members

of the Authority (bolstered by some of the more racist Members of Congress) who wanted to use the authorities given to them by the Alley Dwelling Act to specifically build new buildings for the city's Black residents outside of central urban areas, mostly East of the Anacostia. But on the other hand you had members of the Authority, who had other Members of Congress and Mrs. Roosevelt herself on side, using the text as written to clean these places up and keep their residents in the same neighborhood just in homes with indoor plumbing and even electricity. And that's where Walter Washington got his first job.

Before we really get to him, though, let's get this off my chest here: Congress used to be racist as shit. Sure you have Marjorie Taylor Green nowadays (not for long bitch! but her fringe bullshit was common bullshit back in the day. Look at Senator Theodor Bilbo from Mississippi as just one example. This guy, who was in the KKK while he was a Senator, went around talking about how "twenty-two thousand blacks [should be driven out of the alleys and sent back to farms, shipped back to Africa, or put in 'self-liquidating' stadium]" ([Per pg. 94 of Home Rule or House Rule? Congress and the Erosion of Local Governance in the District of Columbia by Michael K. Fauntroy, 2003](#)).

So in 1944 when this guy becomes Chair of the Senate Committee on the District of Columbia, and starts saying that the District should be a "model city," [I think we can all tell what that means](#). The same Congress and city that had spent the 1930s discovering slum clearance through the Alley Dwelling Act now had a segregationist true believer with the gavel and unlimited imagination for how you could use federal power on a captive local population. The Board of Commissioners stayed white. School administration turned white. The people making decisions about where Black Washingtonians could live, work, and go to school were the same people giving floor speeches about shipping them "back to Africa" or penning op-eds about the danger of "race mixing" on federal property.

But the city, and the country, needed staff. Even before the war, the New Deal was growing the population. Like I alluded to before, DC jumped from about 487,000 residents in 1930 to roughly 663,000 in 1940 as all the New Deal agencies set up shop. Notice how the Black population grew from about 132,000 to 187,000 in that same decade, holding steady around 27–28% of the city. Granted, Roosevelt’s focus wasn’t civil rights, but the administration did something no previous administration had done: by the mid-1930s there were around forty-plus Black professionals in executive branch and New Deal posts (the so-called “Black Cabinet”) and in no small part due to their influence the New Deal agencies opened up a significant amount of jobs and relief that had simply not existed for Black Americans ever before. Layer that on top of the broader Great Migration where millions of Black Southerners leaving Jim Crow Southern and border cities between the 1910s and the 1970s, and Washington starts to look like a logical target: close enough to Virginia and the Carolinas to be familiar as a “Southern city,” but with two opportunities in the form of education and job opportunities. You had a world-class University in the case of Howard that would teach you how to work in the Federal offices, and jobs in those offices paying the same amount regardless of skin color (let alone the fact that they’re some of the few places a person with black skin was allowed to work a white-collar job in the entire country).

So by the time we’re back talking about this bitch from Mississippi, it’s 1944 for fuck’s sake. Turns out that “winning the most deadly war in Human history” requires more than a handful of lawyers and frock coats. This is around when the earliest attempt to organize a March on Washington happened, not just 20 years later when it really went down: it was Asa Philip Randolph and Bayard Rustin who first proposed the idea to march on the city in response to discriminatory hiring at defense contractors during the war, all in a show of force to implore an Executive Order ending the practice. But when President Roosevelt signed E.O. 8802 and established the Committee on Fair Employment Practice before any of that was necessary, the trickle of migration turned into a firehose, and efforts to march become moot for the time being. Again, the population of DC as a whole skyrockets from that 663,000 in 1940 to more than 800,000 by 1950, a 65% increase over twenty years and the highest the population’s ever gone

even to this day. And that's while the Black share of the city climbs from the high-20 to about 35% by 1950 and roughly **54% by 1960**, transforming what Congress still thought of as a federal company town into a majority-Black city. The first majority-Black city in the entire United States, no less.

So the tension in DC is quadrilateral. Yes, just like everywhere else in the country you have people at the highest and the lowest levels in a tug of war over whether or not Black people deserve dignity, but in DC you also have a tug of war between the local and the locality. On that latter fight, one side is 800,000 people, more than live in so states in the Union, who got the promise of "[having] their voice in the election of the government which is to exercise authority over them" way back in Federalist 43 in the fucking 1700s. And the other side is the fact that the City is still organized around the Board of Commissioners from the 1870s: a panel of one Democrat, one Republican, and one civil engineer, all of whom were appointed by the President and confirmed by the Senate. Oh, and remember, those 800,000 people didn't even have a vote for the President or members in the Senate to fall back on. There was genuinely no connection between the electorate and the people in charge.

Now, Members of Congress had been filing bills and resolutions to fix pieces of DC's democratic deficit since basically Reconstruction (local suffrage in the 1860s, various home rule and presidential-vote schemes as early as the **1880s in the case of the Noyes/Blair Amendment**). Every time, though, it ran into the same wall: Southern committee chairs, party leadership doing math on who DC would vote for, and most importantly a rank-and-file membership who had other fires to put out in their own states before they worried about some place that didn't elect them. The fact that people kept losing the fight doesn't mean that Congress didn't care; it means the Members who did care were out-voted and out-gaveled for a very long time.

But then things started to move. By the late 1950s you've got Cold War propaganda about "the leader of the free world depriving its own capital from representation," you've got a majority-Black capital city, you've got civil rights in both the courts and

on the front page, and pretty quickly the idea that the people who live in DC can't vote for President starts to look bad to more than just policy nerds and local activists. But it was actually procedural fights that got the ball moving here. In 1959, worried about continuity of the Legislative Process under extreme circumstances (it's the Cold War, kids, do the math), Senator Estes Kefauver, a Democrat from Tennessee, put forward Joint Resolution ([Senate Joint Resolution 39](#)) to give Governors the power to fill vacancies in the House if over half the House is vacant at one time. Over the next few days, [Senator Spessard Holland of Florida offered an addition to the amendment eliminating poll taxes or property qualifications as prerequisites to voting in Federal elections](#), and [Senator Kenneth Keating of New York would add a section granting the right to vote in Federal elections, and its own delegates in the House](#). And over the next few months, the House Judiciary Committee pushed its own resolution for a constitutional amendment to give DC Electoral College votes "as though it were a state." That sailed through both chambers in June 1960 with support from President Eisenhower and BOTH Candidate Nixon and Candidate Kennedy, and got ratified in 1961 as the 23rd Amendment.

At the same time, the civil rights movement was making its mark on DC's legal architecture. In 1954, *Bolling v. Sharpe* says DC's segregated schools violate the Fifth Amendment's Due Process Clause. Local sit-ins and lawsuits start knocking down "whites only" signs in restaurants, movie theaters, and department stores. The city's Black middle class is growing, Howard Law is cranking out litigators, and churches and neighborhood groups are organizing. So while you still have guys like Bilbo and another important upcoming character waving the "model city" banner from the Senate dais, you also have Senators and Representatives who are now voting *for* civil rights bills, backing enforcement mechanisms, and agreeing that the city can't stay frozen in 1874 forever. Leading to:

Intermission 2: Second intermission, the Second McMillan, and the play within the play

The Era of Protagonists

Walter Edward Washington was born in Dawson, Georgia in 1915 to Willie Mae Washington and William Washington. Growing up in the shadow of Jim Crow and tenant-farm economy, he moved north with his family to Jamestown, New York, as part of the same Great Migration stream that was beginning to rewire the country's Black geography. In the mid-1930s he came to DC to attend Howard University, earning his bachelor's degree in 1938 and his law degree 10 years later.

David Carliner, three years younger, was born in the District in 1918, to a family that ran a local grocery store. He had that blood in him to make a difference as early as his childhood. As a teenager at McKinley Technical High School he was already in getting into trouble for joining left-wing student groups and protesting outside the German embassy after Hitler's rise to power, and he eventually got suspended over his involvement with the National Student League. There's something to be said about growing up in the shadow of buildings every schoolchild in America reads about. I know it myself when all I could do as a kid was walk past the landmarks while I saw people walking into them: you demand that people take you seriously, and that feeling never leaves you.

In 1941 Walter Washington joined the Alley Dwelling Authority, that New Deal-era body created to buy up, clear, and (on paper) humanize some of the city's worst slum housing. He was a diligent worker, getting promoted even before he became a lawyer, but really uncapping his potential when Howard gave him his LL.B... A bureaucrat through and through, not only could he tell you where every yard of pipe was buried and where every surveyed lot landed, he was very much on the First Lady's side as she worked to see the NCHA actually take care of the people living under these terrible conditions. It's only natural for a person named Washington to be taken seriously in DC, but his mix of aptitude and good intentions made him a known quantity in the White House across multiple Administrations.

Carliner, meanwhile, saw his legal education his primary tool for making change, not a credential that made his other tools seem worthwhile. After undergrad, he

immediately went on to National University's law school (now part of GW), and was admitted to the DC bar in 1941 before serving in the Navy during World War II. After the war he built exactly the kind of practice you expect for an activist in lawyer's clothes: immigration cases, free-speech cases, race-discrimination cases, all that ACLU work. Over the course of the 1950s, and 1960s he became a known quantity as the guy who fights for the "unpopular causes" in DC courts, the kind of cases where a lot of those transplants in the Congress and their commissioners would really prefer that both lawyer and client just shut up and go away.

And as a native of the city, Carliner eventually became interested in the broader civil liberties fight over the District itself.

Home rule as a concept was in an interesting spot by then. [There's an incredible source on this in the form of an interview of Stephen J. Spingarn by Jerry N. Hess, courtesy of the Truman Library.](#) Basically, the Senate's on board with home rule as early as the Truman Administration, but remember how I said Congress used to be racist as shit? The Senate actually refused to swear Theodore Bilbo in 1946 because of serious allegations around corruption and using racial violence against black voters (he died of cancer before he could win the fight to get back in), but the House lets in fucking lunatics all the time.

In comes another J. McMillan, the second McMillan, this time **Rep. John McMillan South Carolina**, who chaired the House DC Committee in the late 40s and beyond. This guy was a conservative southern Democrat who used the District as his personal "whipping boy" (Spingarn's words) to impress his electorate in South Carolina and show how tough he can be legislatively on a Black population. Now, this wasn't exclusively a problem with him, but as the head of the District Committee at the time he's the bottleneck that gets a by-line.

Spingarn, who in the 50s was the Administrative Assistant to President Truman, alongside David Lloyd, a Truman White House speechwriter, and Charlie Maylon the White House legislative liaison focusing on the House, all start pushing to get a

discharge petition to move the home rule bill to the floor, but they can't get it to 218. The problem? The same "absentee landlordism" and over-interest in sinking this shit from Southern Democrats that's plagued the city since 1801.

See, Spingarn practices what he preaches after a while: when the District gets the Presidential vote he says "what the fuck am I doing here" and moves his residence to DC as a show of confidence and solidarity. He even tries to run in a local election in 1964, but he loses. It's then, though, that he meets Sturgis Warner, another DC lawyer interested in home rule, and joins the DC Home Rule Committee, a civil society organization that's existed for a few decades now trying to move the needle on self-representation.

Quick aside, I already hear it, let's talk about the elephant in the room: "But if he wanted to be in charge of DC, he was already in the White House, why not try and get on the Commission?"

Idealism. And not the pie in the sky crap that people say "oh that's just idealism" nowadays either, this man held the ideal of Federalist 43 as something that *should* be done, and did his part in bringing it about. Sure, he didn't get to be a political figure in the city, but he made a change based on what he wanted the world to look like, and between him and Mrs. Roosevelt and Senator McMillan and Mayor Bowen and the Alexandria Common Council and probably even President Jackson, a lot of the story of DC is the story of people who make a difference because they have an end-state in mind.

But on the other hand? Between President Roosevelt and President Wilson and Governor Shepherd and General Hooker and President Lincoln and Daniel Carroll Thomas Johnson and David Stuart and Andrew Ellicott and shit even George Washington himself with the cherry tree between his legs, the story of DC is *also* the story of people who know how to get their way when they have an idea, how to sacrifice what they want for what they need, and how to make things stick.

That latter camp was *definitely* the one that Lyndon Johnson was in.

Now, why would Johnson care about home rule? Well, whether if it was the fact that he saw a base of power for the Democrats fresh for the taking in this major city, or if he wanted to free up Congress from the burden of floor time spent worrying about city zoning, trash pickup, and changes to the local criminal code, or if a man whose *reco* alone on civil rights would put him in heaven actually gave a fuck about civil rights, maybe? That's for powers greater than us to decide. But fresh off of losses in the 1964 midterms, thereby losing major momentum in the 90th Congress on the home rule issue even to Spingarn's admission, the President sends a message to Capitol Hill in 1967 that says "get off your ass" (not a direct quote but VERY close).

At this point we're closing the loop here. It's the late 1960s, David Carliner is now officially the head of the Home Rule Committee, and he thinks "we're going nowhere left to our own devices; if our opponents are transplants, we need our allies to be transplants" so he tries to form a "national committee on home rule" and enlist celebrities and politicians to push the issue. Carliner is framing self-representation as a civil rights issue, and if you know anything about American history civil rights was kind of a big deal in the 60s. Carliner's getting labor unions like the AFL-CIO and civic organizations like the NAACP to see home rule as part of the collective fight to get Black Americans to the next level of dignity: the first major city with a Black majority, most of whom are working class union members, deserves the ability to govern itself, or else Black Americans everywhere get left behind. And this wasn't going to be a fringe issue either, Carliner wanted to build a coalition here. That's where Spingarn comes in: Carliner asks if Harry Truman and Dwight Eisenhower will be the co-chairs of the organization, Spingarn has to say "hey Truman's not doing too great health-wise but here's an official letter," and that activity makes it back to Johnson who's already on the "fuck it let's do something," train.

The Reorganization Plan and its consequences

Johnson had talked about home rule since 1965 with his February 15, 1965 “Special Message to the Congress on the Needs of the Nation’s Capital,” but a little over two years later Johnson’s sending another message that’s largely shaped by the discourses of the time, in part courtesy of Carliner and the Home Rule Committee setting that narrative. This one had some more asks attached by the way. Among other things, Johnson wanted to:

- Abolish the Board of Commissioners,
- Create a single chief executive for DC,
- Create a city council with quasi-legislative powers,
- Consolidate the scattered agencies into a modern (at the time) executive structure,
- Give DC a delegate (though non-voting) in the Congress, and,
- Take the city’s crime problem seriously through broad expansions of power we might not find the most appetizing today.

And ever since the Reorganization Act of 1949 (5 U.S.C. ch. 9, nobody tell Trump), Presidents have the ability to propose “reorganization plans” to shuffle the executive branch subject to Congressional *disapproval*. So, since the DC city government was basically an executive agency at the time, Johnson had a lot of room to move here. He submits **REORGANIZATION PLAN NO. 3 OF 1967**

Big deal this one, here’s how it goes. The Plan:

1. **Creates a new District of Columbia Council** of nine members (Chairman, Vice Chairman, and seven others), **all appointed by the President with Senate confirmation**, intended to be nonpartisan and broadly representative of the city.
2. Sets the rules for Council membership: U.S. citizenship, three years of D.C. residency with no other claimed residence, staggered initial terms (expiring in 1968, 1969, and 1970), then three-year terms thereafter; vacancies filled only for

remainder; members can serve past term expiration until a successor is confirmed and the President may remove members for neglect of duty, malfeasance, felony, or “moral turpitude.”

3. Requires oaths and establishes quorum rules for the Council.
4. Creates a Secretary of the Council, appointed by the Council, with authority to hire staff (subject to Council approval) to manage records, logistics, and service for the Council; the Secretary is paid under the federal classification system, while Council members receive fixed annual salaries (highest for the Chairman, then Vice Chairman, then the remaining members).
5. Authorizes the Council to delegate its functions to the Commissioner or, with his/her concurrence, to any D.C. officer, agency, or employee (except the courts), while making clear that when those functions are carried out by units already under the Commissioner’s jurisdiction, they remain subject to his/her direction and control.
6. **Creates the office of Commissioner of the District of Columbia** as a single chief executive replacing the old three-member Board of Commissioners, **appointed by the President with Senate confirmation**, paid at a high Executive Schedule level, subject to removal by the President, and required (along with his Assistant) to maintain residency in D.C.
7. Sets the Commissioner’s term and succession rules: the first term runs to February 1, 1969, thereafter four-year terms; vacancies are filled only for the remainder; the Commissioner may hold over until a successor qualifies; and the President may designate other D.C. officials (including Council leadership, if he chooses) to act as Commissioner during absence, disability, or vacancy, in a prescribed order of succession.
8. Creates an “Assistant to the Commissioner” as a separate PAS post, paid at a lower Executive Schedule level, whose sole purpose is to assist the Commissioner in carrying out the functions of the office as the Commissioner directs.

9. Gives the Commissioner broad administrative design authority: he may create new D.C. agencies and offices, name them, appoint their heads, assign them functions, and set their pay under the classification laws, essentially allowing him to shape the executive branch beneath him.
10. Empowers the Commissioner to shift people, money, and assets among D.C. agencies in order to implement the reorganized structure, and to delegate almost all of his own functions to other officers, employees, or agencies (again, not the courts).
11. **Transfers all executive powers of the old Board of Commissioners**(including the powers of its President and each member, and the formal “executive power” of the Board) directly to the new Commissioner, making him the legal successor to the entire pre-1967 executive authority.
12. Transfers a huge block of specific regulatory and quasi-legislative functions from the old Board to the new Council, grouped roughly into subject-matter fields such as: general municipal police and regulatory powers, licensing, standards, and discipline for professions and trades, public welfare and assistance rules, police and fire organization, discipline, and personnel standards, building codes, height limits, fire safety, urban renewal, and redevelopment approvals, health, communicable disease control, sanitation, garbage, smoke, and civil defense, streets, alleys, highways, bridges, and traffic-adjacent infrastructure, parks, public spaces, and public convenience stations, public buildings, wharves, and municipal property management, markets, weights and measures, and price-posting rules, institutional care for prisoners, feeble-minded persons, girls’ training schools, hospital patients, certain criminal-law regulatory powers over hunting, harbor and unwholesome food, alcoholic beverage licensing, import controls, and tax administration, corporate charters, small loans, pawnbrokers, charitable solicitations, and other business oversight, tissue banks and crematoria, local “daylight saving” adjustments, business corporation filings and fees, education related finance, tuition for non-residents, and teacher-retirement rules, hospital

and health-institution licensing and rates, food, milk, and drug regulations (including controlled substances), insurance company oversight and rate-regulation procedures, labor standards and workplace safety, motor vehicle registration, equipment standards, traffic and parking control, retail installment sales, and parking facilities, public utilities (electric conduits, poles, water, sewer sanitary charges, Potomac interceptor), passenger-for-hire vehicle insurance and bonding, real-property taxation and licensing of certain real-estate occupations, unemployment insurance and related “social security” administration, D.C. revenue and tax enforcement across property, income, sales, excise, and cigarette/fuel taxes, and miscellaneous modern statutes including proxy rules, certified public accountancy, WMATA board appointments (which had only existed for a few months at that point), work-release administration, and certain federal–local compacts.

13. Builds a new budget process that forces interaction between Commissioner and Council: the Commissioner prepares D.C. appropriations requests, he submits them first to the Council, the Council may approve them unchanged (in which case he forwards them to the Bureau of the Budget) or revise them, if he agrees with the revisions he forwards the revised version, if he disagrees with specific revisions he must return the package with his reasons, the Council can insist on its revisions by a three-fourths vote of members present and voting and thereby force him to submit the Council’s version, if the Council takes no action for 30 days the Commissioner’s original submission is deemed approved, and the Commissioner cannot delegate his decision whether to concur in or oppose Council revisions.
14. Gives the Commissioner an approval/veto power over Council regulations and revenue measures, outside the Council’s internal housekeeping: the Commissioner prepares D.C. appropriations requests, he submits them first to the Council, the Council may approve them unchanged (in which case he forwards them to the Bureau of the Budget) or revise them, if he agrees with the revisions he forwards the revised version, if he disagrees with specific revisions he must return the

package with his reasons, the Council can insist on its revisions by a three-four vote of members present and voting and thereby force him to submit the Council version, if the Council takes no action for 30 days the Commissioner's original submission is deemed approved, and the Commissioner cannot delegate his decision whether to concur in or oppose Council revisions.

15. Reassigns the Board of Commissioners' seats on the Zoning Commission to the new structure: the old Board President's zoning seat goes to the Council Chairman, the Engineer Commissioner's seat goes to the Commissioner, and the third Commissioner's seat goes to the Council Vice Chairman.
16. Preserves the internal powers of certain semi-independent D.C. entities (notably the Board of Education, public libraries, Recreation Board, Public Service Commission, Zoning bodies, Recorder of Deeds, and Armory Board) while transferring to the Commissioner and Council all the *Board-of-Commissioners-type* oversight functions previously exercised over or around these bodies.
17. Transfers staff, property, records, and funds from the old Board of Commissioners to the new Council and Commissioner in two stages: first according to allocations made by the Director of the Bureau of the Budget (Council-related work to the Council, the rest to the Commissioner), and then subject to further internal reallocations by the Commissioner under his own authority.
18. And **abolishes the three-member Board of Commissioners** and its three Commissioner offices (including the Army Engineer Commissioner), while permitting the President to continue detailing up to three Corps of Engineers officers to assist the new Commissioner.

Sure, Presidential appointment with Senate confirmation? Looks like training wheels to me. But we've upgraded from the tricycle of a three-man commission to stop one man from having all that power, to an actual big kid bike.

Mr. Washington goes back to Washington

Johnson submitted the reorganization plan to Congress on June 1, 1967. It went into effect on August 11, 1967 (in part, according to the sections encoded into Title 5). Even though Congress was in session that August, it wasn't until September 6, 1967 when Johnson put forward a nominee for the Commissioner job.

Now, three weeks isn't really a ton of time to be thorough, so it was likely that Johnson had his nominee in mind beforehand, but he throws a bone to why Grant's nominee failed when he makes his announcement:

“Even this new system can be only as strong and fair as the men who will lead it. That is why, for the last 3 weeks, I have engaged in an intensive search throughout the Nation to find the very best city executives for the posts of D.C. Commissioner and Assistant to the Commissioner. In that search, we have reviewed literally hundreds of names and records.”

So ... Spingarn? Carliner? According to Harry Jaffe and Tom Sherwood in their 1994 book “Dream city: race, power, and the decline of Washington, D.C.”, Johnson originally wanted a white mayor to placate Capitol Hill, and Washington Post publisher Katharine Graham and managing editor Ben Bradlee agreed. Early candidates were Edward Bennett Williams, Nelson Rockefeller, Averell Harriman, Dean Acheson, and even Sargent Shriver. It was Roger Wilkins, nephew of Roy Wilkins, who convinced Johnson that it was such a waste to spend all that time convincing Congress to create a one-man executive in DC only to appoint a white mayor, but when Johnson said something like “good point, want the job?” Wilkins said something like “hell no, there's no Washington without Washington” (the Walter E. variety this time).

Johnson, in his speech announcing the nomination, said:

“His name is Walter Edward Washington. I am sending his nomination to the Senate as soon as it reconvenes. I hope that it will receive speedy and favorable consideration.

Walter Washington's adult life and his distinguished career have been spent in the city. He makes his home here. He is a graduate of Howard University and attended the American University in Washington. He has been a fighter for effective government in the Nation's Capital. He knows the people of this city—because he is one of them.

The summary of the jobs he has held is an exciting story of commitment to the public service and the public good.

He is a distinguished lawyer.

He is a nationally famous specialist and innovator in urban problems.

After joining the National Capital Housing Authority in 1941, he rose through the ranks to become its Director in 1961. He held that post for 5 eventful years.

There he won the respect of his fellow citizens—not only in Washington but from urban experts throughout the Nation.

A year ago, Walter Washington went to New York to take the job as chairman of the New York City Housing Authority.

Now Mr. Washington has expressed his desire to come back home to lead his city. He has put the job of first responsibility to the 800,000 citizens of the District.”

The Senate received Mr. Washington's nomination (along with the nomination of Thomas W. Fletcher to be Assistant to the Commissioner) on **September 11th of the year**, and the District Committee held hearings on their nominations on **September 20th**. Confirmation votes were held on **on the Senate floor the very next day**. **Senator Kuchel of California submitted a statement in support of the pair, read by the legendary Senator Dirksen of Illinois, and Senator Pell of Rhode Island read his own statement in support of Mr. Washington.**

Kuchel's speech was Fletcher-heavy, which makes sense considering Fletcher was the city manager of San Diego for 5 years before his nomination. Pell, though, even admitting that he didn't personally know Washington, said that “the District of Columbia is fortunate indeed in having President Johnson's recommendation of Walter E. Washington as Commissioner, for he is a man of national reputation in the

housing field, which is one of the acute areas of concern in the growth of our cities, and that “It is my belief that the reorganization plan which is now going into effect in the District of Columbia will bring about a most progressive and most viable government for our nation’s first city; and in order to do this, the best man, and on the best man, should be in the position of such great responsibility as Commissioner. It is my thought that President Johnson has chosen wisely in Mr. Washington.”

With friends like these, support from Majority Leader Mansfield, Minority Leader Dirksen, and major supporters of the President, both men sailed through confirmation, and **President Johnson swore them in on September 28, 1967.**

A single executive in DC for the first time since the 1800s, for the first time while it majority-Black city, the first majority-Black city in the nation no less, and a Black man is the top choice to lead it. Incredible. But Congress is Congress. You can have enough votes to let progress happen, and enough problem children to ruin a good moment: congratulate Washington for submitting his first budget to Congress, a disgruntled John McMillan sent him a truckload of watermelons.

Elections Comeback Tour

Just months before Mayor/Commissioner Washington became Mayor/Commissioner **Julius Hobson**, a Black civil-rights organizer and future local elected official, was tired of watching D.C. kids play a rigged game. On paper, the DC Board of Education (which was a 9-person body appointed by, of all people, the United States District Court for the District of Columbia, so there’s no accountability to the city there) said it was providing a “modern education,” with all its IQ tests, “ability grouping,” neighborhood zones, and “optional zones” that let parents pick schools. In practice, Hobson was watching white kids front-row to the good teachers, small classes, and honors track while Black kids a few blocks away get overcrowded rooms, worn-out books, and a one-way ticket to the “slow” track based on tests nobody trusts. So he sued, hauling the Board of Education and Superintendent Carl Hansen into federal court in **Hobson v. Hansen, 269 F. Supp. 401 (D.D.C. 1967)**. The court sat down with maps, enrollment

charts, and testimony from parents and experts and ends up writing what is, formal a case about the Fifth Amendment's equal protection component in the District, but reads like a narrative of how a whole school system sorted children by race without ever saying the word "segregation" out loud. Judge J. Skelly Wright (Judge of the United States Court of Appeals for the District of Columbia Circuit) found that the tracking, the optional zones, and the way teachers and resources get assigned aren't just unfortunate side effects. Instead, they lock Black children into inferior schools and violate their constitutional rights. So, on June 19, 1967, the holding landed like hammer: these practices are unconstitutional, and the court ordered busing, redraw attendance lines, and dismantling of the tracking plan.

What the fuck does that have to do with the Home Rule Act? Well, the eyes on this case got a lot of eyes on this byzantine structure where the city gets to vote for the President, who can appoint a District Court Judge with the advice and consent of the Senate that the city has no representation in, who in turn appoint this school board who actually make decisions about the city's schools. Run-on sentence? Run-on procedure. Congress thought it was stupid as shit too, and with all this energy around home rule they thought "alright nobody's bankrupting the city on the school board, this is an easy first step."

Bam. April 22, 1968. The District of Columbia Elected Board of Education Act (Public Law **90-292**, **82 Stat. 101**). We have it on fucking record of Congress saying "Congress hereby finds and declares that the school is a focal point of neighborhood and community activity; that the merit of its schools and educational system is a primary index to the merit of the community; and that the education of their children is a municipal matter of primary and personal concern to the citizens of a community. It is therefore the purpose of this Act to **give the citizens of the Nation's Capital a direct voice in the development and conduct of the public educational system of the District of Columbia**; to provide organizational arrangements whereby educational programs may be improved and coordinated with other municipal programs; and to make District schools centers of neighborhood and community life."

That's your first local election in a lifetime. Literally. Only fitting that Julius Hobso was elected one of the first members of this thing, right?

Hmmm. April 1968, though. I feel like that was an important month...

The Mindless Menace of Violence

On April 4, 1968, at 6:01 p.m. central time, Dr. Martin Luther King Jr. was fatally shot at the Lorraine Motel in Memphis, Tennessee. He was rushed to nearby St. Joseph's Hospital, where he was pronounced dead at 7:05 p.m. He had just turned 39.

It's difficult to explain Dr. King's place in American life at the time of his death, especially because his reputation could not be universal among one group of people who wanted equal rights for Black Americans and another group of people who thought Black Americans weren't people at all. But at the very least, the man was *widely* known. A few hundred thousand people attended his funeral on April 9th.

But Dr. King was an important figure in DC specifically, too. He visited the city multiple times, and met with President Johnson in the process as described by the *Judgement Days* by Nick Kotz I'd cited earlier. He was also something of a local celebrity. He spoke at the [Lincoln Memorial in 1957](#) ("Give Us the Ballot") and then [course again in 1963 at the March on Washington](#) ("I Have a Dream"). He was even in the city four days before his assassination, on March 31, 1968, when he gave the [sermon at the Washington National Cathedral](#) ("Remaining Awake Through a Great Revolution"). From these three speeches alone, it's likely that upwards of 100,000 DC locals heard the man talk, even if we don't count other times when Dr. King served as a visiting preacher at the various churches that his friend, and informal representative to the White House, [SCLC Director Walter Fauntroy would invite him to](#).

So try and imagine the situation when the news hit. A great resource on this is J. Samuel Walker's *Most of 14th Street Is Gone*, especially because perspective matters. See, even after 30 years of housing reforms, the city is largely segregated by neighborhood. And at first it was paralysis. People drifted out of their homes and

businesses simply to be together, gathering in dazed silence or weeping openly on the sidewalks of a neighborhood that was colloquially known as “Black Broadway.”

Stokely Carmichael, the former chairman of SNCC who by this point had moved to DC, walked into the SCLC’s local office on 14th Street and U Street NW with a small group and told the staff “we have to get moving.” By some accounts he was trying to channel the grief into something organized; by a lot of others he was inciting violence for violence’s sake. I’m not going to get my personal feelings involved here (I personally believe a guy burned down my city). What’s not in dispute is what happened next: Carmichael and a group of maybe two dozen people walked south down 14th Street, stopping at businesses that were still open and telling them to close, out of respect for Dr. King. Some did. Some didn’t. And at some point, exactly when and where depends on who you ask, the windows at People’s Drug Store at 14th and U started breaking, and after that it wasn’t really about closing stores anymore.

I need to be careful here because there’s a version of this section that treats the events of April ‘68 like they came out of nowhere. They didn’t. If you’ve been reading this far then you know about Wilson’s segregation. You know about Bilbo and his “ship them back to Africa” bullshit. You know about the displacement, the slum clearance that moved people East of the Anacostia instead of giving them indoor plumbing, the decades of white committee chairs using the District as a laboratory for racial control. You know that means that there’s this air pressure pushing a majority of this city’s citizens into a few neighborhoods where they had to fend for themselves, shipping their kids off to some backwater school without lights, all while taking their paychecks away every few months in the middle of the post-war boom because I guess black people don’t need paychecks.

And then the one fucking guy who said things can be different without bloodshed got shot.

By midnight, 14th Street NW was on fire. By Friday morning it had spread all the way to 7th Street NW, and simultaneously the same thing was happening on H Street NE.

If you know DC, those three corridors tell you everything. These were the spines of Black commercial life in the city.

Over the next four days, the numbers accumulated in a way that's hard to hold in your head all at once. More than 1,100 buildings were burned or damaged. When I was a kid in the early 2000s, I remember empty lots in the middle of the city that were STILL empty after the property on them burned down in these riots. Twelve people were killed outright. Over 6,100 people were arrested. More than a thousand were left homeless. Twenty blocks of 14th Street alone were gutted.

On the evening of April 5th, President Johnson authorized the deployment of federal troops into the city. Over 13,600 soldiers and National Guardsmen from the Army's Third Infantry Regiment, the 82nd Airborne, and the DC National Guard took up positions across the District. Machine gun nests went up on the steps of the Capitol Building. The 3rd Infantry set up around the White House. If you want to know what that looks like, [there are photographs](#). You need to see them for yourself, there's no way I can describe them.

The last time there were this many soldiers in the streets of Washington was during the Civil War, when they were there to defend the capital from a Confederate army. But 100 years later, in April 1968, they were there because the capital's own residents were grieving in the only way that a century of disenfranchisement had left available to them.

Again, in comes Walter Washington. I need you to hold two things about this man in your mind at the same time:

1. He is the appointed Mayor-Commissioner of a city he did not run for office in, a bureaucrat who spent decades learning the machinery of housing policy from the inside, the guy who could tell you where every yard of pipe was buried, who had the White House and the Congress' full approval.
2. He has been in this job for 6 months.

But Washington did something that a lot of leaders in a lot of other American cities that were experiencing their own riots did not do that week: he walked the streets.

As a matter of fact he became known for that over the course of his career.

But for now, the Mayor-Commissioner went into the neighborhoods that were burnt and talked to people directly, not from behind a police line, not through a spokesman face to face. While elected officials, like Mayor Daley in Chicago issued shoot-to-kill orders against looters, the unelected Mayor-Commissioner Washington refused to do the same. In fact, he famously worked with Deputy Secretary of Defense Cyrus Vance whom Johnson had sent as his personal representative to coordinate the federal response, to keep the military posture as restrained as the situation would allow. Washington set up emergency shelters, coordinated food distribution, kept the city social services running; he held the thing together.

None of this was in the job description. There is no section of Reorganization Plan 3 of 1967 that says “and in the event that the city burns down, the Commissioner should walk through the fire and talk people out of their grief.” That’s not a power you can delegate from the President with Senate confirmation. Washington did what he did because he was the kind of person who does that, and in doing so he earned something no appointment could confer: the trust of the people who actually live here.

When all was said and done the physical scars didn’t heal quickly. A lot of them haven’t healed yet to this day 50 years later. Those three corridors, 14th Street, 7th Street, H Street, didn’t come back for decades. Like I mentioned, I grew up in a city where you could still read the riots in the streetscape: the gaps between the houses, the vacant lots that sat empty for 30 years, the stretches where the building dates suddenly jump from the 1910s to the 2010s with nothing in between. The building on 14th beneath the U St intersection where this started is a fucking Trader Joe’s now. Draw your own conclusions about whether that’s progress.

But the political scars? Well. Even the Members of Congress who didn't give a shit about DC had to deal with the fact that the seat of the Federal Government just needed 13,600 troops to maintain order. Madison wrote in Federalist 43 that Congress needed "complete authority at the seat of government" so that "the public authority might [not] be insulted and its proceedings interrupted with impunity." And there were. The public authority has been insulted. Proceedings were very much interrupted. Congress was in session in April, these people became very unsafe. And it happened not because Congress lacked authority over this city but *because* Congress had been exercising that authority, directly, completely, and poorly, for almost a hundred years and this is where it got us.

"But hold on," I hear you saying, "didn't the Reorganization Plan just happen? Didn't Johnson just fix the structure? Isn't Walter Washington proof that the new system works?"

Sure. The new system worked in the sense that the city had a competent man in charge during a crisis. But that wasn't necessarily because of this new system, and in fact contemporary accounts believed it was *in spite* of this new system where a city of the quarters of a million people, the first majority-Black major city in the United States was governed by a man they didn't choose, advised by a council they didn't choose, reporting to a President they could just barely vote for, subject to a Congress they had no representation in.

If you'd like to read more about the riots, Here's a great article from WETA/Boundaries on the M.P.D. and the riots ([archived version](#)) here's one on the incredible account of local legend Petey Greene ([archived version](#)), and I sincerely recommend [Samuel Walker's *Most of 14th Street Is Gone*](#).

But how the FUCK do you move on from this.

The 1968 CRA, and the Nelsen Commission

Johnson was pretty shaken up by King's death and the riots. From a lot of accounts, two were friendly with each other (which is saying a lot when Johnson's involved). A then suddenly in the middle of Vietnam and all the extra blood pressure it was giving the President, and just a few days after the guy said "you win, I won't run again," you have the seat of American government, the place Johnson's wanted to call home since he was a child, the place he's been for 3 decades, up in flames over civil rights (the thing he, unlike most of these other dickheads who called the White House home was *actually fucking working on*).

Rough.

The solution? Well everyone grieves differently, and I guess Johnson can't fucking cope without passing a law about it.

And there was this one bill that got stuck for a while. The House passed its version back in August of 1967, and the Senate had been sitting on it for months because, as if you've read Part 4 of this series you already know why, the Senate doesn't do anything fast unless everybody agrees to do it fast, and not everybody agreed. Cloture failed a few times already in early 1968, because by now Southern Democrats and conservative Republicans readily knew that the filibuster is a great way to stop progress.

But of course, like we said, Dr. King was killed, and a few cities in America (but especially the one that Congress was in) started burning down. Sure, the Senate passed cloture on March 11th, before the assassination, but it was the conference report that was stalling, and the House hadn't voted on the Senate's amended version yet. Then on April 10th, six days after the assassination, the House passed the bill. Johnson signed **the Civil Rights Act of 1968 (P.L. 90-284)** on April 11th. One week. That's how fast things move when there's a fire under Congress' ass.

Now, why does this matter for our story about DC? Because Title VIII of this thing, the Fair Housing Act, made it illegal to discriminate in the sale, rental, or financing

housing based on race, color, religion, or national origin. Think about what that means for a city where Congress spent decades letting displacement happen by neighborhood, where the Alley Dwelling Authority fought internally over whether to house Black residents in their own communities or push them East of the Anacostia, where Wilson's segregation and Bilbo's "model city" rhetoric had shaped the physical geography of who lived where for half a century. Title VIII didn't undo all of that overnight, nothing could, but it changed the legal framework that the next generation of DC governance would operate under.

And Title I? Made it a federal crime to use interstate commerce or the mail to incite riot, but it also made it a federal crime to interfere with someone's civil rights through force or threat of force. People who burned down 14th Street could be prosecuted, sure, but, theoretically, so could the people who created the conditions that made 14th Street burn in the first place. Congress was acknowledging, in statute, that civil rights violations and civil unrest were connected.

But Johnson wasn't done. The 1968 CRA was national legislation, it applied everywhere. The question of what to do about DC *specifically* though, about the city governance, about the fact that the people who lived in the national capital still couldn't choose their own leaders? That was still open. And Johnson was running out of time. Like I mentioned, he'd already announced he wouldn't seek reelection, meaning whoever came next would inherit this problem. So between signing the CRA and leaving office in January of 1969, the question became: what can we get done before the clock runs out, and what do we have to hand off?

What Johnson couldn't get done was home rule. Not in the months he had left, not with the political capital he'd already spent, not with the midterm losses in '66 still hanging over the 90th Congress. But what Congress COULD do, what they did do, even if it took until September of 1970, well into Nixon's term, was lay the groundwork.

Nixon, for his part, came into office in January 1969 talking about DC governance. Whether that was genuine belief in self-determination (he was admittedly an early supporter of Home Rule even back when he was in the Congress), or a political calculation about looking reasonable while running on “law and order” (which likely won him the election) is, as I keep saying, for powers greater than us. But things were moving on the issue.

In comes **An Act to establish a Commission on the Organization of the Government of the District of Columbia and to provide for a Delegate to the House of Representatives from the District of Columbia** (Public Law 91-405, 84 Stat. 845). Funny enough, since the section on the Delegate is Title II of the Act, and X01 is usually just the citation of the title, after almost 200 years, DC gets representation in Congress under [Section 202 of this bill](#). Don't you love it when it all comes together?

Ok, Delegate, what can they do? Well, they have “the right of debate, but not of voting,” and “shall have all the privileges granted a Representative by section 6 of Article I of the Constitution ...” So, they can't actually vote, which sucks, but [what's one vote in the House really worth anyway](#). Still, they CAN sit on committees, mark bills, propose their own, and if you've read my old posts, you know that a vote on the floor is only one piece of the power a Member of Congress has. Markups, committee assignments, proposal power, and access to the building means they can make the connection to colleagues in the hallways and the dining room.

Section 206 required that special elections for the Delegate position be conducted within seven months of enactment, including primaries, direct nominations by petition, and the general special election itself. Walter Fauntroy won that special election in March of 1971. Remember him? Dr. King's friend? The SCLC's director in Washington? The guy who'd been inviting King to preach at DC churches for years who helped coordinate the March on Washington, who had a direct line to the civil rights establishment and the credibility that came with decades of organizing? [The](#)

man who showed Bobby Kennedy around a devastated city after the King riots? The man became DC's voice in the Congress.

But wait, read that title again. Two things. Same bill. Same vote. Same signature. Congress moved on two fronts simultaneously, and the fact that they put both in on package tells you something about the political logic: the Delegate was the short game giving DC a voice in Congress right now while the studying happened, but the *commission* was the long game, studying what a new DC government should look like. Neither one alone would've been enough to pass, the commission without the Delegate looks like stalling, and the Delegate without the commission looks like a consolation prize. Together, they looked like a plan.

So, Title I creates the commission. And this is important: it's not a Presidential commission. It's a Congressional creation. Section 104 lays out the membership: twelve people, appointed in three groups of four. The President appoints four (two from the executive branch or DC government, two from private life). Senate leadership, the chair of the Senate DC Committee, and the chair of the Senate DC appropriations subcommittee jointly appoint four (two Senators, two from private life). And the Speaker of the House appoints four on the advice of the House DC Committee chair and the House DC appropriations subcommittee chair (two Representatives, two from private life). All twelve had to be in place within thirty days of enactment.

Why does that matter? Ownership. If this were a Presidential commission, much like a lot of Johnson's, then sometime down the road when the report comes out, a potentially different (read:racist) membership in Congress could dismiss whatever it recommended as executive overreach. But if the commission were purely Congressional, the White House could ignore it, and Nixon was no Lyndon Johnson when it came to civil rights. But by splitting the appointments three ways, with equal representation from the President, the Senate, and the House, nobody gets to say "t

wasn't our commission" when the report lands on their desk. Everybody's fingerprints are on it.

The commission's job, per Section 103, was to study "the present organization and methods of operation of all departments, bureaus, agencies, boards, commissions, offices, independent establishments, and instrumentalities of the government of the District of Columbia" (basically every piece of DC's government except the courts) and figure out what needed to change. They had six months from enactment to submit a comprehensive report to Congress, and another six months after that for a final report after which the commission would cease to exist.

In comes **Rep. Ancher Nelsen of Minnesota**, one of the House appointees, who was elected chairman by the commission's members under Section 106(a). That's why people call it the Nelsen Commission, even though the name makes it sound like his personal project. It wasn't. See, Nelsen mattered for a specific reason: he was a Republican, so Nixon liked him, but he also sat on the House District Committee, so he actually understood how DC's government worked (or didn't). And critically he wasn't a Southerner. After decades of McMillan and Bilbo and their successors using the District Committee as an instrument of racial control (in the exact same way people want to be on committees today, may I add), putting a moderate Midwestern Republican at the head of a reform commission was a signal. The commission could be seen as bipartisan and serious, not as the same old Southern caucus deciding what's best for a Black city trying to score political points.

The curtain's going up

So do you remember the second McMillan? Rep. John McMillan of South Carolina, Johnny Mac. The guy who chaired the House District Committee for the better part of two decades, who used DC as his personal whipping boy, who refused to even bring home rule bills up for a vote in his committee even when they'd already passed the Senate?

Well, the Senate passed home rule bills six times between 1948 and 1966 (and that's according to the DC city council themselves, but they won't give me a fucking bill number because why would anyone make my life easy).

SIX TIMES. Every single one of them died in McMillan's committee, because the man who decided what happened to 800,000 people in the District of Columbia answered voters in Mullins, South Carolina. He was the bottleneck. He was the reason that all the organizing, all the commissions, all the momentum from the riots and the civil rights movement and the 23rd Amendment and the Delegate couldn't turn into a law.

But, whoops, there just so happens to be more passion, more energy, more footwork during the height of the civil rights movement, and oh man it looks like a key leader of the movement is literally DC's voice in Congress now.

See, Tip O'Neill said "all politics is local." Johnny Mac used his influence on DC to help him out in South Carolina's 6th, and for a while nobody had any structural reason to get in the way of that. But in comes Walter Fauntroy, with an EXACT reason to put that same game in reverse. During his first year in office Fauntroy (who unlike most other members was in his district whenever Congress was in session) spent a significant chunk of his recess time in South Carolina. He was organizing for John Jenrette, who beat McMillan in the South Carolina Democratic primary in the summer of 1972 thanks to Fauntroy's help. And even though Jenrette didn't win the general election in 1972 (and went on to do some crazy shit later in life, google him), Johnny Mac was convinced.

Think about that. If you can't vote in the chamber that controls your city, maybe you can influence who gets to sit in that chamber in the first place. Fauntroy went into McMillan's district, worked with local civil rights organizations and Black voters, and helped them do what the people of DC couldn't do for themselves. Maybe we should remember this when we're talking about elections in the future (I'm looking at the mouth breathers in Pennsylvania and Ohio).

With McMillan gone, things started moving. In January 1973, when the 93rd Congress convened, **Rep. Charles Diggs of Michigan** became chairman of the House District Committee. Diggs was Michigan's first Black congressman, a founding member (along with Fauntroy) and first chair of the Congressional Black Caucus, and a man who'd been on the District Committee since the 1960s watching McMillan strangle home rule from the chair's seat. Now the gavel was his, and the bottleneck was gone.

On one side, you had the maximalists. Fauntroy, Diggs, the rest of the Congressional Black Caucus, Carliner's Home Rule Committee, the NAACP, the AFL-CIO, and many of the city's residents wanted something close to full self-governance: an elected mayor and council with real legislative power, budget autonomy, and minimal Congressional interference. They'd been fighting for this for a century, but a hundred years of patience doesn't make you patient, it makes you tired.

On the other side, you had the "yes, but" crowd. Some of these people legitimately (maybe rightfully) believed that DC needed Congressional guardrails because of the city's unique status as the seat of government, essentially the Federalist 43 argument updated for the 1970s. Others, and let's be honest about this, didn't want a majority Black city to have the kind of power that majority-white cities took for granted. And some Members of Congress simply didn't want to give up the leverage that came with controlling DC's budget and laws, because that leverage was useful for other political negotiations. The motivation didn't always matter; the effect was the same: whatever bill passed was going to have locks on the doors.

There was also a practical argument that didn't come from a bad place. Remember Shepherd? The bankruptcy set the city back 20 years, just look at the difference between Chicago and DC. Even Members who supported home rule wanted to make sure there were mechanisms to prevent that from happening again. The layover periods, the disapproval process, the budget oversight, some of that is racism, some of that is Shepherd's ghost, and in practice it's often impossible to tell which is which.

It's coming down to the wire here. Diggs held hearings, marked up a bill, and reported it out of committee. On the House floor, **he reminded his colleagues:**

“When we talk about self-determination for the District of Columbia we are not only talking about a matter of local interest, but because of the unique role of this capital community, it is of concern to each one of the Members of the 435 districts across this country.”

Go fuck yourself Johnny Mac.

The House passed the bill in October 1973.

And here's where things get interesting in a way that only makes sense if you've been paying attention to how Congress works this whole time: **the Senate had ALREADY passed its version earlier that year**; the fucking bill started in the Senate. Two chambers, same concept, different details, you already know it's party time. Now they need a conference to reconcile the differences, and the conference is where the real negotiations happened. What should the council look like, how many members, elected how? How much budget authority does the city get? What can Congress still override? How long should Congress have to review DC's laws before they take effect?

The conference report came back, both chambers agreed, and on December 24, 1973: Christmas Eve, Nixon signed the bill into law. **That night, he said:**

“As a longtime supporter of self-government for the District of Columbia, I am pleased to sign into law a measure which is of historic significance for the citizens of our Nation's Capital. I first voted for home rule as a Member of the House of Representatives in 1948, and I have endorsed the enactment of home rule legislation during both my terms as President ... As the Nation approaches the 200th anniversary of its founding, it is particularly appropriate to assure those persons who live in our Capital City rights and privileges which have long been enjoyed by most of their countrymen.”

Promises made (by Madison, before the fucking constitution was ratified) promises kept (kinda, a little bit, not exactly). But wait a minute, what the fuck am I even talk about, I thought we were still in the intermission what's Nixon signing?

The District of Columbia Home Rule Act: The Finish Line

After all this fucking time (and with a working congress.gov page for once), introducing the star of the show: *AN ACT To reorganize the governmental structure of the District of Columbia, to provide a charter for local government in the District of Columbia subject to acceptance by a majority of the registered qualified electors in the District of Columbia, to delegate certain legislative powers to the local government, to implement certain recommendations of the Commission on the Organization of the Government of the District of Columbia, and for other purposes*, also known as "District of Columbia Self Government and Governmental Reorganization Act," **ALSO KNOWN AS The Home Rule Act (F L. 93-198, 87 Stat. 774).**

Signed December 24, 1973. Seven titles. This thing is *long*. The Organic Act of 1871 was like 8 pages; this is 62 pages of the Statutes at Large. It simultaneously builds a new government, dismantles the old one, reorganizes a bunch of existing agencies, sets up a referendum process, amends the DC Election Act, and, because Congress always be Congress and the plenary power didn't go away, bolts the locks on the door before handing over the keys. Here's what's in it:

Title I — Short Title, Purposes, and Definitions (Sections 101-103)

Names the act. Section 102 is the statement of purposes and it tells you everything. The very first clause reads: "Subject to the retention by Congress of the ultimate legislative authority over the Nation's Capital granted by article I, section 8, of the Constitution..." Before they even tell you what they're giving, they remind you what they're keeping. But after that throat-clearing, the stated purposes are to delegate "certain" legislative powers, authorize elections, grant local self-government, modernize the government structure, and "relieve Congress of the burden of

legislating upon essentially local District matters.” Read that again, this isn’t framed as a gift to DC, it’s framed as Congress unburdening *itself*.

Section 103 defines terms for the rest of the act, standard Congress shit, but this one includes a distinction between an “act” (lowercase, meaning legislation passed by the new Council) and an “Act” (uppercase, meaning an Act of Congress), which is going to matter a lot.

Title II — Governmental Reorganization (Sections 201-204)

This is the part that takes effect regardless of whether voters accept the charter that we’ll get to in a little bit. It restructures four existing agencies under DC government authority:

The Redevelopment Land Agency (Section 201), which goes from a Federally-controlled entity to an instrumentality of the District government. Five members, appointed by the Commissioner (later the Mayor), with consent of the Council.

The National Capital Housing Authority (Section 202), which is just the Alley Dwelling Authority under yet another name, and also becomes an agency of the District government.

The National Capital Planning Commission (Section 203), which gets restructured to separate its “Federal activities” planning function from the District’s own planning. The Commission keeps authority over Federal developments, but the District’s elements of the comprehensive plan are now developed by the Mayor and adopted by the Council. Critical detail: the Commission can reject District plan elements if it determines they have a “negative impact on the Federal Establishment,” but if the Commission doesn’t act within 60 days, the element is deemed approved. That 60-day silent approval is one of the few places in this act where inaction works in DC’s favor.

And *the District of Columbia Manpower Administration* (Section 204), which transfers employment service functions from the Secretary of Labor to the Commissioner, so

DC can run its own public employment service the way states do.

Title III — District Charter Preamble, Legislative Power, and Charter Amending Procedure (Sections 301-303)

Section 301 establishes that the charter (Title IV) takes effect only if voters accept it in a referendum.

Section 302 is the grant of legislative power, and it reads beautifully if you stop in the middle where it says “the legislative power of the District shall extend to all rightful subjects of legislation within the District consistent with the Constitution of the United States and the provisions of this Act.” Oh, except that part starts with “Except as provided in sections 601, 602, and 603,” which is where all the shit you’re going to be mad about lives (we’ll get to Title VI).

Section 303 establishes how the charter itself can be amended: the Council passes an amendment, voters ratify it in a referendum, and then Congress must approve by concurrent resolution within 35 legislative days. This means DC can’t change its own foundational governing document without asking permission from a body in which it has no voting representation. And the amendment procedure can’t be used to touch anything in Sections 601-603, so the locks are not amendable through the charter process.

Title IV — The District Charter (Sections 401-495)

This is the meat. Six parts.

Part A — The Council (Sections 401-413)

Creates a 13-member Council of the District of Columbia, elected on a partisan basis. The Chairman and four members are elected at-large; eight members are elected one from each ward. There’s four-year terms. Here’s the kicker, and this is why it’s important to read the original bill not the amended bill when we’re talking about the

history: no more than three at-large members (including the Chairman) can be from the same political party. That's Section 401(d)(3), and it was inserted by congressional Republicans who were worried Democrats would dominate (they were right, but this provision means two of the at-large seats are guaranteed to the minority party). First elected members' terms are staggered by lot, some get four years, some get two, to avoid replacing the entire body at once.

Section 402 sets qualifications: qualified elector, domiciled in DC (and in the ward in which elected from a ward), one-year residency, and you can't hold another compensated public office. Section 403 sets compensation at GS-12, with the Chairman getting an extra \$10,000/year but also a prohibition on outside employment — the Chairman's is full-time, period.

Section 404 vests the legislative power in the Council. The Mayor gets line-item veto on appropriations acts (two-thirds override), and veto on all other acts (also two-thirds override). If the Mayor doesn't act within 10 days, the act becomes law without his signature.

Section 412 requires every proposed act to be read twice with at least 13 days between readings. Emergency legislation requires two-thirds vote and expires after 90 days. Council can issue subpoenas (Section 413) and hold people in contempt through the Superior Court.

Section 411(b): when the Office of Mayor is vacant, the Chairman becomes Acting Mayor, but while serving as Acting Mayor, the Chairman can't exercise any authority as Chairman or member of the Council.

Part B — The Mayor (Sections 421-423)

Creates the Office of Mayor, elected on a partisan basis for a four-year term. Same one-year residency requirement, same no-outside-employment restriction. Section vests executive power in the Mayor and makes them "the chief executive officer of the

District government.” The Mayor gets to appoint a City Administrator who serves at his pleasure (Section 422(7)), propose legislation to the Council, issue administrative orders, and reorganize the executive branch (subject to Council disapproval within 30 days).

Important: Section 422(3) requires the Council to establish a District government merit system by act, which must provide personnel benefits “at least equal to” what federal employees had before the system took effect. The merit system had to be operational between one and five years after the charter took effect.

Section 423 makes the Mayor the “central planning agency” for the District. He’s responsible for the District’s elements of the comprehensive plan for the National Capital. But his planning authority explicitly does not extend to “Federal and international projects and developments” as determined by the National Capital Planning Commission, or to the Capitol buildings and grounds.

Part C — The Judiciary (Sections 431-434)

The courts not being an afterthought??? The 70s were wild.

The judicial power of the District is vested in the DC Court of Appeals and the Superior Court of the District of Columbia (Section 431). But here’s the thing: judges are NOT elected and NOT appointed by the Mayor. They’re nominated by the President of the United States and confirmed by the United States Senate, with candidates selected from a list prepared by the District of Columbia Judicial Nomination Commission (Section 433). The Commission itself is structured to be partially locally-controlled (one member appointed by the Mayor, one by the Council, one by the DC Bar, one by the chief judge of the US District Court for DC, and one by the DC Court of Appeals chief judge), but the appointing power stays federal. Fifteen-year terms, mandatory retirement at 70, and a separate Commission on Judicial Disabilities and Tenure for removal and discipline (Section 432).

So, DC is the only jurisdiction in the country whose local judges are appointed by the President and confirmed by the Senate. Every other local judiciary in America is either elected or appointed by a local executive. Interesting to know.

Part D — Budget and Financial Management (Sections 441-455)

This is the part where Shepherd still haunts the city.

Section 442: the Mayor prepares an annual budget.

Section 446: the Council, within 50 calendar days, adopts the budget by act after public hearing. But then the Mayor submits it to the President of the United States, who transmits it to Congress. And here's the sentence that matters: "No amount may be obligated or expended by any officer or employee of the District of Columbia government unless such amount has been approved by Act of Congress."

Section 447: "No employee shall be hired on a full-time or part-time basis unless such position is authorized by Act of Congress." So congress authorizes the *positions*.

Section 445: the DC courts prepare their own budget estimates, the Mayor forwards them to the Council "without revision," and the Council can comment on the court budget but has "no authority under this Act to revise such estimates." The courts' budget goes through the Mayor to the President to Congress without the Council being able to touch it.

Section 455: creates the Office of the District of Columbia Auditor, appointed by the Chairman with approval of a majority of the Council. Six-year term. Conducts annual audits.

Part E — Borrowing (Sections 461-490)

More of Shepherd's haunting here. DC can issue general obligation bonds for capital projects, subject to a cap: total annual debt service on all outstanding bonds and

Treasury loans cannot exceed 14% of DC revenues (Section 603(b), cross-referenced here). Borrowing legislation must get two readings, 14 days apart, and must be published once a week for three weeks before it takes effect (Section 463). DC can issue revenue bonds (Section 490).

Part F — Independent Agencies (Sections 491-495)

Board of Elections (Section 491): three members, appointed by the Mayor with Council consent, no more than two from the same party.

Zoning Commission (Section 492): five members. Three are Federal: the Architect of the Capitol and two presidential appointees from the National Capital Planning Commission. Two are appointed by the Mayor. The federal government has a 3-2 majority on the body that controls zoning in the city. I thought you dickheads might think that was interesting. (The Zoning Commission's regulations must also be "not inconsistent with the comprehensive plan for the National Capital," per the amendments in this section.)

Public Service Commission (Section 493): three members, appointed by the Mayor with Council consent. Regulates public utilities.

Armory Board (Section 494): the commanding general of the DC Militia plus two mayoral appointees with Council consent.

Board of Education (Section 495): 11 elected members on a nonpartisan basis, three large and one from each of the eight school election wards.

Title V — Federal Payment (Sections 501-502)

Section 501 requires the Mayor to study the costs and benefits of DC being the nation's capital: lost revenue from tax-exempt federal property, costs of unreimbursed federal services, revenue that can't be collected because of the nonresident income tax ban (from Section 602(5)). The Mayor submits a federal payment request to the

Council, the Council acts on it, the Mayor sends it to the President, and the President sends it to Congress.

Section 502 authorizes the annual federal payment: \$230 million for FY1975, rising \$300 million per year from FY1978 onward. But remember, these are *authorizations*, *appropriations*, so Congress still has to actually appropriate the money, which it frequently did not do at the authorized level.

Title VI — Reservation of Congressional Authority (Sections 601-604)

This part locks on the doors.

Section 601 — Retention of Constitutional Authority. One sentence, and it's probably to-be-expected here: "Notwithstanding any other provision of this Act, the Congress of the United States reserves the right, at any time, to exercise its constitutional authority as legislature for the District, by enacting legislation for the District on any subject, whether within or without the scope of legislative power granted to the Council by this Act, including legislation to amend or repeal any law in force in the District prior to or after enactment of this Act and any act passed by the Council." Everything in Title IV, the elected mayor, the elected council, the legislative power, of it, exists at the pleasure of a body in which DC has no voting representation. An easy problem to solve if that last section changed, but ... here we are.

Section 602 — Limitations on the Council. The Council cannot:

- (1) Tax property of the United States or any state.
- (2) Lend public credit to support private undertakings.
- (3) Enact anything that concerns federal functions or property, or that isn't exclusively applicable to the District.
- (4) Touch title 11 of the DC Code (organization and jurisdiction of the DC courts).

(5) Tax the income of any individual who is not a resident of the District. This is the commuter tax ban. Every other major American city can tax the income people earn within its borders regardless of where they live. DC cannot. Maryland and Virginia's delegations made sure of that.

(6) Permit any building to exceed the height limitations of the Act of June 1, 1910, which is why DC has no skyscrapers.

(7) Touch the Commission on Mental Health.

(8) Touch the US District Court for DC, other federal courts, or the duties of the US Attorney or US Marshal.

(9) Touch the criminal code (titles 22, 23, and 24 of the DC Code) for the first 24 calendar months after the Council takes office.

Section 602(c) is the layover provision. Every act passed by the Council, signed or not vetoed by the Mayor, gets transmitted to the Speaker of the House and the President of the Senate. It doesn't take effect until 30 legislative days have passed without Congress adopting a concurrent resolution of disapproval. For acts touching the criminal code (titles 22, 23, and 24), either house acting alone can disapprove.

Section 603 — Budget. Nothing in the act changes the existing budget process roles of Congress, the President, OMB, or the Comptroller General. The 14% debt service cap. The Council can't approve a budget with expenditures exceeding estimated revenue. The Mayor can't send Congress an unbalanced budget.

Section 604 — Congressional Action on Certain District Matters. This is the fast-track disapproval procedure. A resolution of disapproval goes to the House or Senate District Committee. If the committee sits on it for 20 calendar days, it can be discharged, the motion to discharge is "highly privileged": debate is limited to one hour, no amendments, no motion to reconsider. Once the resolution reaches the floor, debate is limited to 10 hours total, split evenly, no amendments, no motion to

recommit. This is a streamlined kill switch. Congress can veto any DC law with minimal procedural friction. I sure wish we had this kind of privilege for objecting the other branches of government but hey maybe one day.

Title VII — Referendum; Succession in Government; Temporary Provisions; Miscellaneous; Amendments to DC Election Act; Rules of Construction; Effective Dates (Sections 701-771)

Part A — Charter Referendum (Sections 701-704)

The Board of Elections must hold the charter referendum within five months of enactment. Voters get two questions: accept the charter (yes/no) and establish Advisory Neighborhood Councils (yes/no). If a majority votes against the charter, Title IV never takes effect.

Part B — Succession in Government (Sections 711-719)

Abolishes the offices of Commissioner and Assistant to the Commissioner (the old Reorganization Plan 3 government). Transfers all functions, personnel, property, and funds to the new government. Existing statutes, regulations, and pending proceedings continue in effect.

Part C — Temporary Provisions (Sections 721-723)

Gives the President authority to take actions during the transition period to keep things running. Authorizes \$750,000 from the Treasury (reimbursable) to fund the Board of Elections and the referendum. Gives the Mayor interim loan authority from the Treasury for capital projects already authorized.

Part D — Miscellaneous (Sections 731-743)

Section 731: agreements between DC and Federal agencies for furnishing services to each other, at cost. The Chief of the Metropolitan Police is required to assist the

Secret Service and the Executive Protective Service on a *nonreimbursable* basis, DC picks up the tab for protecting the President.

Section 732: any DC officer convicted of conflicts of interest forfeits their office.

Section 737(b): the United States shall reimburse DC for costs of “assemblages, marches, and other demonstrations in the District which relate primarily to the Federal Government.” In theory. In practice this is one of those provisions that’s been fought over ever since.

Section 738: Advisory Neighborhood Councils. The Council divides the city into neighborhood council areas. Upon petition of 5% of registered voters in an area, an elected advisory neighborhood council is established for that neighborhood.

Nonpartisan elections, single-member districts, held on the same cycle as Board of Education elections. ANCs get to advise on planning, streets, recreation, social services, health, safety, and sanitation, and must receive notice of zoning changes, variances, public improvements, and significant permits in their area. Funded by a property tax apportionment formula. This is the hyperlocal governance layer that most American cities don’t have, and it’s a direct product of this act.

Section 739: National Capital Service Area. Creates a federally-controlled zone around the principal monuments, the White House, the Capitol, the Supreme Court building and adjacent federal office buildings. The President appoints a National Capital Service Director to ensure fire protection, sanitation, police, and street maintenance within this area. This is the federal enclave *within* the District.

Section 740: Emergency Control of Police. The President can take control of the Metropolitan Police force when he determines “special conditions of an emergency nature exist which require the use of the Metropolitan Police force for Federal purposes.” He has to notify the District committees in writing within 48 hours. This is the provision that lets the President commandeer DC’s own police department.

Part E — Amendments to the DC Election Act (Section 751)

Extensively amends the existing DC Election Act to accommodate the new elective offices — Mayor, Chairman, Council members — including primary and general election schedules, ballot arrangements, nominating petitions, and vacancy procedures.

Section 752: Notwithstanding anything else in the act, the Council has authority to legislate on “matters involving or relating to elections in the District.” One of the few areas where the Council gets a clean grant of authority.

Part F — Rules of Construction (Section 761)

If anything in this act conflicts with other law, this act wins.

Part G — Effective Dates (Section 771)

Title I and Title V take effect immediately on enactment (December 24, 1973). Title II takes effect July 1, 1974. Titles III and IV take effect January 2, 1975, if voters accept the charter. Title VI and the miscellaneous provisions take effect only if and when Title IV becomes effective. The election act amendments take effect when voters accept the charter.



Ok, I get it now. Senator Thomas F. Eagleton releases the original bill on April 2, 1974, it gets through the Senate by July 10th, referred to the House on July 12th. Takes until October for the House to put their version away ([H.R.9682](#)) but they pass with amendments on October 10th, agree to a conference. December 6th we get the conference report. The House votes and agrees on December 17th, and the Senate agrees on the 19th. Nixon gets it on the 20th, and signs it on Christmas Eve. **Great we're caught up.**

But the bill wasn't self-executing. Like I said, the Home Rule Act required a referendum, the people of DC had to actually accept the charter. On **May 7, 1974**, voters approved it by a margin of about 4 to 1. And then on November 5, 1974, Washington, DC held an election for mayor and city council for the first time since 1874.

A hundred years.

And who won?

Washington Winner In Mayoral Election

By Jay Mathews and LaBarbara Bowman
Washington Post Staff Writers

Walter E. Washington became this century's first elected D.C. mayor yesterday, according to early unofficial election returns that also showed three longtime community activists and a member of the current appointed City Council virtually assured at-large seats on the new D.C. Council.

Democrats Marion Barry and Douglas E. Moore and Statehood Party candidates Julius Hobson Sr. — three men whose names have been synonymous with activist black leadership here since the 1960s—took strong leads over a field of 17 candidates for the four at-large seats.

Republican Jerry Moore, a Baptist minister appointed to the current Council in 1969, was running fourth in the at-large race, well ahead of shoe store chain owner Frank H. Rich with about 20 per cent of the vote counted.

Sterling Tucker, now vice chairman of the appointed Council, was apparently elected to the second most

powerful city post — D.C. Council chairman. He and Washington, who endorsed each other in the campaign, were taking 80 and 82 per cent of the vote respectively against an assortment of relatively unknown opponents, according to partial early returns.

D.C. Del. Walter E. Fauntroy, a Democrat, was elected to a second two-year term. Independent James G. Banks, expected to give Fauntroy a strong challenge, had 22 per cent of the vote in early incomplete returns.

Democrats were leading in the seven wards where results were available. They were: David A. Clarke, ward one; John Wilson, ward two; Polly Shackleton, ward three; William R. Spaulding, ward five; Nadine P. Winter, ward six; Willie J. Hardy, ward seven; James E. Coates, ward eight.

In the school board races, Elizabeth Cooper Kane apparently bested a field of five other candidates to win an at-large board seat. Ap-

See DISTRICT, A11, Col. 5

Front Page of the Washington Post November 6, 1974

Who else. The bureaucrat from the Alley Dwelling Authority. The guy who could tell you where every yard of pipe was buried. The man who walked through a burning city in April of 1968 and talked his neighbors out of their grief. The appointed Commissioner who earned Johnson's approval, the Senate assent, and the city's trust by doing the job when no one else could. And now, finally, the people of DC chose Walter Washington for themselves.

“as they will have had their voice in the election of the government which is to exercise authority over them”

It took almost 200 years, Mr. Madison. But they got their voice.

Sort of.

The End of History (in this post)

The reason I wrote this section instead of just jumping to the mechanics of how Congress and DC work together is because I need to explain how this city’ is facing the same three problems over and over again.

DC is the seat of government, and the seat of government requires extraordinary attention. That’s the Pennsylvania Mutiny. That’s Federalist 43. That’s Article I Section 8. That’s why its such a problem when the city goes bankrupt. That’s the reason a plenary power exists in the first place, and every time Congress writes a provision that lets the President commandeer the Metropolitan Police or carve out National Capital Service Area or retain authority over federal courts in the District, they’re working on a problem from 1783.

And DC is a bargaining chip. It was a bargaining chip before it existed: Jefferson traded the site for Hamilton’s debt assumption plan at a dinner table in 1790. It was bargaining chip when Virginia took Alexandria back to protect its slave markets. It was a bargaining chip when the Democratic coalition let Southerners sit on the District committee to win points with their constituents while they voted in favor o the New Deal. It was a bargaining chip when Maryland and Virginia’s delegations wrote a commuter tax ban into the Home Rule Act to protect their own revenue. Ev time DC gets something, somebody else gets paid, and the price comes out of the pockets of people who had no seat at the table.

And DC is a place where people live. People who need roads and sewers and school and banks and police and courts and a government that answers to them. That’s wh

Madison promised. “As a municipal legislature for local purposes, derived from the own suffrages, will of course be allowed them.” But every time the city tried to build that government, under Bowen, under Shepherd, under the appointed Commission, under Walter Washington, Congress found a reason to take it back or keep it on a leash. Bowen spent the road money on integrating schools and the city went broke, Congress handed the infrastructure to a board with no public accountability, and Shepherd spent it into the ground, so Congress abolished self-government for 99 years. When the city was majority white, Congress said it couldn’t be trusted with money. When the city became majority Black, Congress said it couldn’t be trusted at all. And when home rule finally came, Congress wrote a law that gives with Title IV and takes with Title VI.

Just think about this chain of events again. The Home Rule Act is deliberately limited because Congress still doesn’t trust the city to govern itself, because “the city” means “Black people” or “impossible mismanagement that puts the rest of the country on hook for one city’s problems” or “a jurisdiction that exists at our pleasure in the first place” depending on who’s talking and when, but the Act also *has* to exist because the civil rights movement and the 1968 riots and Fauntroy’s organizing forced Congress to give something back even if they couldn’t force Congress to let go, because for 99 years segregationist committee chairs like Bilbo and McMillan used direct Congressional control over a Black city as a laboratory for racial policy, because proximity to the South and federal employment and emancipation made DC a majority-Black city during the same decades Congress was governing it directly, and that direct governance only happened because Congress abolished self-government after Shepherd spent the city into bankruptcy, because Congress created a board of public works outside democratic accountability after Bowen spent the road money on integrating schools, because Congress kept promising to fix representation later and never did, because plenary power over the District means the people living there answer to a body they can’t vote for so why do we need to worry about their problems and those people are only there since DC is on the Potomac where there were already settlements because Jefferson needed Southern votes for Hamilton’s debt plan,

because Congress needed to protect itself from another Pennsylvania Mutiny and couldn't get the votes to come up with a good location for its own sake.

Now do you get why I wrote like 45 pages of material explaining how we got here?

These things don't come from nowhere, they come from the difficulty in trying to take the ideals of the United States and turn them into reality. And in the last 250 years, we've continued to grapple with the fact that prosperity and self-determination are not always aligned, philosophical issues turned into the policy mechanics that my series is known for.

But enough of that shit, let's talk about how the city runs after all this.

Congress & DC Today

The part you expected from an FD Congress Post

How a DC Law Gets Made

Ok so here's how legislation actually works under home rule. Follow the bouncing ball because there are a lot of steps.

Step 1: The Council. Members of the Council have exclusive authority to introduce bills. The Mayor, independent DC agencies, and the Uniform Law Commission can transmit proposed legislation to the Council, but only for introduction by the Chairman. Once introduced, a bill is referred to the relevant committee by the Chairman, same concept as what the Speaker or the Presiding Officer does in Congress itself, except with 13 people instead of 435 or 100.

The committee holds hearings, proposes amendments, and votes to report the bill. It then goes to the Committee of the Whole (yes, they have one of those too) for review and preparation for regular session.

Here's where it gets distinctive. In order to be enrolled and sent to the Mayor, the Council must consider the bill on two separate occasions. First reading: the Council may consider amendments and pass the bill by majority vote. Then, after *at least 13 intervening days*, the Council considers the bill a second time, typically without substantial amendment. Two readings, 13 days apart, for every permanent piece of legislation.

“But what if there's an emergency?” Good question.

Section 412(a) lets the Council pass emergency legislation after a single reading if two-thirds of members agree, but emergency acts expire after 90 days. The Council also has a “temporary legislation” category under its own rules that can last up to 225 days, which is basically a bridge to buy time while the permanent version goes through the two-reading process. Neither emergency acts nor resolutions are subject to the formal Congressional disapproval process I'm about to describe, which is one of the few procedural advantages they have.

Step 2: The Mayor. Once the Council passes a bill on second reading, it goes to the Mayor for a 10-day review. The Mayor can sign it, in which case it's approved. The Mayor can do nothing for 10 days, in which case it's also approved. Or the Mayor can veto it, which sends it back to the Council for a potential override at two-thirds of members present and voting. For appropriations acts, the Mayor gets a line-item veto with the same two-thirds override threshold. This is all pretty standard chief-executive stuff, not that different from how the President interacts with the Hill.

Step 3: Congress. Here's the part I promised in the introduction where I said “But you know that despite advancements in home rule, DC is still subject to Congress in ways the States just aren't?” Do you even remember that I wrote that? You're a different person now. I barely remember I wrote that, I wrote that shit 2 years ago.

Once the Mayor approves the bill (or the Council overrides the veto, or the Mayor lets it become law without his signature), it becomes an “act” (lowercase a, as defined in

Section 103(7) of the Home Rule Act). The Chairman of the Council then transmits a copy of this act to the Speaker of the House and the President of the Senate.

And then, everything goes on pause for a little bit.

The act does not take effect. It *cannot* take effect until a specified review period (called a “layover period”) expires without Congress disapproving it. For most legislation, the layover period is 30 *legislative* days. For anything touching the criminal code (titles 2 (Criminal Offenses and Penalties), 23 (Criminal Procedure), and 24 (Prisoners and Their Treatment) of the DC Code), the layover is 60 *calendar* days.

See that distinction? “30 legislative days” is not the same as “30 days.” When they’re counting legislative days under the Home Rule Act, they exclude Saturdays, Sunday federal holidays, and any day on which either the House or the Senate is not in session because of an adjournment. This means a law passed by the Council in July, before Congress recesses for August, might not take effect until October. A law passed in November before Congress adjourns for the year might not take effect until well into the next session. There is no American city in this country, *let alone* a state in the Union, where the legislature passes a law about parking meters and then waits three months for another legislature that the city can’t vote for to decide it’s ok.

And during that layover period, Congress can kill it.

The Disapproval Procedure: Section 604

Section 604 of the Home Rule Act establishes a fast track procedure for Congress to disapprove DC laws. If you’ve read my posts, you know that “fast track” in Congress means “we wrote special rules into statute that bypass the normal committee and floor process to make something easier to bring to a vote.” Trade Promotion Authority is fast track. The Congressional Review Act is a fast track. Budget Reconciliation is a fast track. If I ever recover from writing this post I’ll write about those. This is another one, and it works like this:

Introduction. Any Member of the House or Senate can introduce a joint resolution disapproval targeting a DC act at any time after it's been transmitted to Congress a before the layover period expires. There's no limit on the number of resolutions that can be introduced. The resolution has a prescribed form under Section 604(b): "That the [House/Senate] approves/disapproves of the action of the District of Columbia Council described as follows: ____." Fill in the blank. It's only one resolution per DC act, you can't bundle them.

Referral. The resolution gets referred to the relevant committee. In the House, that's the Committee on Oversight and Accountability (it used to be the House District Committee, but that was abolished in 1995 and the jurisdiction was transferred). In the Senate, it's the Committee on Homeland Security and Governmental Affairs (same story, the Senate District Committee was abolished in 1977).

Quick aside here, because this matters: the original Home Rule Act sent these resolutions to the "Committee on the District of Columbia" in each chamber. Those were standing committees dedicated to DC affairs, with members who (for better or worse) knew the District's business. McMillan's chairmanship was a nightmare, but at least the people making decisions about DC were people whose *job* was DC. Now that jurisdiction sits with committees whose primary focus is government-wide oversight and homeland security. DC is an agenda item in someone else's portfolio. That's a consequence of the committee restructuring in the 1970s and 1990s, and it means there's less institutional knowledge and less institutional interest in getting DC governance right. If you've read my heated comments about either the House Oversight Committee or HSGAC's membership, this should clue you in on why.

Committee action. The committee can hold a markup, but per the Home Rule Act's structure, amendments to the resolution aren't really in play. The statute doesn't *explicitly* bar amendments in committee, but Section 604(h) bars them on the floor, so there's no point, anything a committee added would be ineligible for floor

consideration. Granted, this hasn't really been tested, it's just a widely-accepted reading of the rules that means in practice the committees don't bother.

Discharge. Here's where it gets sharp. For resolutions targeting criminal code legislation (titles 22, 23, 24), if the committee hasn't reported the resolution within 21 calendar days of introduction, it is in order to move to discharge the committee. The motion to discharge is "highly privileged" per statutory language from Section 604(c) meaning it takes precedence over most other business. Debate on the discharge motion is limited to one hour, equally divided. No amendments to the motion. No motion to reconsider. One shot: up or down.

For resolutions targeting non-criminal legislation, the discharge mechanism is *not* available under the statute. Presumably, those resolutions would need to be reported by the committee to access the fast-track floor procedures. But "presumably" is doing a lot of work in that sentence, again this hasn't been tested too many times.

Calling it up. Once the committee reports the resolution (or is discharged from it), a Member can make a motion to proceed to consider it. This motion is not debatable, can't be amended. The vote can't be reconsidered. And here's the kicker from Section 604(g): this motion can be made "even though a previous motion to the same effect has been disagreed to." You can lose the motion to proceed, and then immediately make it again. The act is designed to make this resolution *extremely* difficult to avoid.

Floor consideration. If the motion to proceed is adopted, the resolution is pending before the chamber. Debate is limited to 10 hours, equally divided between support and opponents. A nondebatable motion to limit debate below 10 hours is in order. The resolution cannot be amended. It cannot be recommitted to committee. The vote cannot be reconsidered. All appeals from decisions of the Chair are decided without debate.

Read that paragraph again: no amendments, no recommittal, no reconsideration, no debate on appeals. Every procedural tool that a minority normally uses to slow things

down or modify the outcome has been stripped out. The only question is: do you have a majority or don't you? Adoption is by simple majority vote.

Second chamber. Here's an interesting wrinkle. The original Home Rule Act was written to allow a one-chamber or two-chamber legislative veto, meaning the House or Senate acting alone could kill a DC law. In 1983, the Supreme Court ruled in *INS v. Chadha* that single-chamber legislative vetoes are unconstitutional. Congress amended the Home Rule Act to require a joint resolution (meaning both chambers and presidential signature), but didn't add explicit parliamentary provisions for what happens in the second chamber after the first chamber acts. In practice, the second chamber has given privileged status to properly submitted joint resolutions adopted by the other body. But there's no statutory guarantee of that.

Presidential action. If both chambers adopt the joint resolution, it goes to the President. If the President vetoes it, Congress can attempt an override under normal procedures, which, in the Senate, means the veto message is privileged but fully debatable and therefore potentially subject to filibuster and cloture. So in theory, a Senate filibuster of a veto override could save a DC law that both chambers of Congress wanted to kill.

So, DC's last line of defense is a procedural technicality in the chamber where DC has no representation.

How often has this actually happened? The disapproval procedure has been used to block exactly four DC acts since 1973. But that number understates its influence, because the threat of disapproval shapes what the Council passes in the first place. You don't need to actually shoot someone to get compliance if they know you have a gun. Eleven joint resolutions of disapproval have received floor consideration total. The most recent was in 2023, when Congress enacted H.J.Res. 26 to overturn the DC Council's Revised Criminal Code Act of 2022, a comprehensive rewrite of the District's criminal code that the Council had spent *16 years* developing.

What the Council Can't Touch

Otherwise important, though, are topics that are completely outside of the Council control per the Home Rule Act.

Section 602(a) lists subjects the Council has zero authority over. Not limited authority. Zero.

The Council can't tax federal or state property. Fair enough, that's consistent with intergovernmental tax immunity nationwide.

The Council can't lend public credit to private undertakings. Also pretty standard.

The Council can't enact anything concerning federal functions or property, or anything that isn't exclusively applicable to the District. This means the Council can pass a law that incidentally affects how a federal agency operates, even if the law is about a local matter.

The Council can't touch the organization or jurisdiction of the DC courts. The courts are in the charter (Title IV Part C), but the Council can't change how they work. That's Congress's prerogative.

The Council can't tax the income of nonresidents. This is Section 602(a)(5), and I want to be very clear about what it means: if you live in Bethesda and commute to a job in downtown DC, you pay Maryland income tax on what you earn. You pay zero to DC. If you live in Arlington and work in DC, you pay Virginia income tax. You pay zero to DC. Every other major city in America: New York, Philadelphia, Detroit, Columbus, Cleveland, Kansas City, St. Louis, can tax income earned within its borders regardless of where the earner lives. DC cannot. The Maryland and Virginia delegations wrote this into the Home Rule Act to protect their own residents' wallets, and it costs DC billions in revenue every year. And remember who wasn't at that table? DC, which has no voting members in the body that made this decision.

The Council can't permit any building to exceed the height limitations in the Act of June 1, 1910. This is why DC has no skyscrapers. The Height of Buildings Act was a product of the same early-1900s era that produced the McMillan Plan, Congress protecting the aesthetic and functional character of the seat of government. Fine. But it also means DC can never build the density that could offset some of the revenue it loses from the commuter tax ban. These two provisions work together to make DC structurally poorer than it would otherwise be, and the Council can't change either one.

The Council can't touch the Commission on Mental Health.

The Council can't legislate about the US District Court for DC, other federal courts, the duties of the US Attorney or US Marshal for the District.

And the Council originally couldn't touch the criminal code at all for the first 24 months after the charter took effect. That prohibition expired, but Congress kept the 60-day layover and the easier disapproval procedure for criminal legislation permanently. Why the criminal code specifically? Two reasons. One: Congress does trust DC to manage its own public safety (ok, fine, history isn't always on our side, but it's not always not on our side). Two: crime in DC is a national talking point. The President, Presidential appointees, Members of Congress, and their staff live and work here, and "crime in the nation's capital" is a story that writes itself. The criminal code gets special treatment because the seat-of-government tension and the trust-deficit tension overlap on this exact subject. We'll talk more about this in a bit.

The Budget

Section 446 of the Home Rule Act says that after the Council adopts the annual budget, the Mayor submits it to the President, who transmits it to Congress. And then "No amount may be obligated or expended by any officer or employee of the District of Columbia government unless such amount has been approved by Act of Congress."

I need you to understand what that means. DC has its own tax base. DC residents pay federal income tax (about \$17,000 per capita, among the highest in the country). They also pay DC income tax, DC property tax, DC sales tax. That money goes into the DC general fund. It is DC's money. And DC cannot spend its own money without Congress passing a literal Act of Congress to authorize it.

This means DC's budget is subject to the federal appropriations process (and we've come all the way back around). It gets rolled into the Financial Services and General Government appropriations bill. When Congress doesn't pass its spending bills on time, which, as a reminder, is *almost every single year*, DC gets caught in the shutdown. The District government can't pay its employees, can't operate its services, can't keep its trash collection running, even though it has billions of dollars of its own revenue sitting right there. Because Congress hasn't acted.

In 2013, during the federal government shutdown, the DC Council passed emergency legislation to spend its own local funds. Congress had not approved this. Mayor Gray authorized it anyway. The Antideficiency Act (31 U.S.C. 1341), which prohibits government officers from spending money that hasn't been appropriated, technically applied to DC, because DC's budget is a federal appropriation. It was a legal gray area that nobody wanted to test in court, because everybody knew the answer would be "DC can't spend its own money without Congress saying so" and that would be humiliating for everyone involved.

Section 603(c) adds a balanced budget requirement: the Council can't approve a budget where expenditures exceed estimated revenues, and the Mayor can't send Congress an unbalanced budget. Fine, fiscal responsibility is a reasonable ask. But couple it with the commuter tax ban and the height limit and the fact that the federal payment authorized in Section 502 (which was *supposed* to compensate for all the revenue DC loses by being the capital) has never been consistently appropriated at the authorized level, and you get a city that's constitutionally prohibited from raising adequate

revenue, statutorily prohibited from deficit spending, and procedurally prohibited from spending what it does raise without permission from people it didn't elect.

Appropriations Riders

This isn't in the Home Rule Act itself, but it's how Congress most commonly exercises control over DC. When Congress passes DC's annual appropriations bill (or, more commonly, the omnibus or continuing resolution that includes it), it attaches general provisions ("riders") that prevent the District government from spending funds on specific activities. Technically this happens all the time, look at any appropriations bill and there's definitely riders in there, but the difference is that those are prohibitions on agencies of the Federal Government doing something, this is its own damn city.

Some of these are fiscal directives. Fine, whatever, like I said, Congress does that to federal agencies too.

But some of them are pure social policy, and this is where it gets ugly:

Congress has used riders to prohibit DC from spending money on abortion services through Medicaid. This rider was first imposed in 1988, repealed in 2009, and reimposed in 2011. Not federal funds, *local* funds. DC's own tax revenue, raised from DC residents, prohibited by Congress from being used for a legal medical procedure.

Congress has used riders to prohibit DC from spending money to lobby for voting representation in Congress or statehood.

Congress used a rider in 1998 to prevent DC from spending any money to even *count the votes* on a ballot initiative legalizing medical marijuana. DC voters approved the initiative 69% to 31%, but Congress blocked the count, and then the next year passed a rider overturning the initiative entirely by saying it "shall not take effect." Congress eventually lifted the rider in 2009, and DC enacted a medical marijuana law in 2010. In 2014, DC voters approved a broader marijuana legalization initiative, and Congress responded with a rider prohibiting DC from spending money to "enact any law, rule,

or regulation to legalize or otherwise reduce penalties associated with” marijuana. ’ initiative took effect (because it was self-executing), but the Council has been unable to create a regulatory and commercial framework for it because Congress won’t let spend the money to do so.

Congress has used riders to prohibit DC from funding needle exchange programs. In 1998, at the height of the HIV/AIDS crisis, a crisis that hit DC’s Black population catastrophically, Congress barred DC from spending local funds on a public health intervention that every major medical organization supported. That rider was eventually lifted, but for years, DC couldn’t use its own money to save its own residents’ lives because of a national policy dispute.

This is the bargaining chip problem in its purest form. DC’s appropriations bill is a legislative vehicle, and legislative vehicles carry riders. Members of Congress with constituents in DC attach policy provisions to DC’s budget because it’s easy, because it’s convenient, and because DC can’t stop them. The District’s budget becomes a Christmas tree for other people’s culture wars.

Congress Can Also Just... Pass Laws

Sometimes people forget we’re allowed to do this, but we can. Between the plenary power in the Constitution itself, and Section 601 of the Home Rule Act, Congress can pass a standalone bill about any DC matter, at any time, for any reason. Nobody needs to wait for the Council to act. Nobody needs to use the disapproval procedure. We can just legislate. We won’t, but we always can.

Congress has used this power to amend the Home Rule Act itself, expanding DC’s bonding authority in some cases, restricting it in others. Congress created the DC Financial Control Board in 1995 ([Pub. L.104-8](#)) when the city hit a fiscal crisis (it’s like every 100 years on the dot guys come on). Congress enacted the District of Columbia School Reform Act of 1995 (technically this was an approps rider but it started out as a standalone act, but it was passed in [Pub. L. 104-134](#)) to create the public charter schools.

system and waste more money on bad education than anywhere else in the Union. Congress had to pass a law to amend the Height of Buildings Act to allow for penthouses ([Pub. L. 113-103](#)). Shit, Congress mandated that DC taxis use meters ([Pub. L. 109-356](#)).

Taxi meters. Congress of the United States of America, the body that declares war & ratifies treaties, passed a law telling DC's cabs to install fare meters. (Quick sidebar again but a really good friend of mine's dad was a cab driver in the city, and he always used to complain about how the meter system made DC's cab drivers the worst paid in the country, which is crazy because the old zone system was pretty iconic and both pro-driver *and* pro-local.)

This is the seat-of-government tension and the trust-deficit tension combining. Congress does this partly because Members of Congress live here and get annoyed about local things (the taxi meter law is almost certainly a "some Rep. got ripped off by the zones" situation), and partly because Section 601 makes it trivially easy. There's no special procedure needed. It's just a bill. Introduce it, refer it to committee, mark it pass it, send it to the other chamber, get a signature. Granted, bills are harder to pass than ever these days. But come on.

The Judiciary

I covered this in the section-by-section, but it bears repeating in this context because of how unusual it is. DC's local judges, both Superior Court and Court of Appeals, are nominated by the President of the United States and confirmed by the United States Senate. The DC Judicial Nomination Commission creates a shortlist, so there's local input into the selection process, but the actual appointment power is federal. Judges serve 15-year terms with mandatory retirement at 70 and are subject to removal by a separate Commission on Judicial Disabilities and Tenure.

No other local judiciary in America works this way. Every other city and county in the country either elects its judges or has them appointed by a locally elected executive

DC's local judges answer to a President that DC residents get three electoral votes and a Senate where DC has zero representation.

And the US Attorney for DC, who prosecutes not just federal crimes but local felonies including murder, robbery, assault, and arson, is also a presidential appointee, not a locally elected or locally appointed prosecutor. The US Attorney's Office for DC is the largest in the country, with over 330 Assistant US Attorneys, and it's unique among 94 US Attorney's Offices in the nation: it serves as both the federal prosecutor and the local district attorney, responsible for prosecuting all serious local crimes committed by adults in the District, from drug possession to murder. The AUSAs who try these cases are federal employees in the Department of Justice. They don't even have to be admitted to the DC Bar. They sure as shit don't care about the situation in DC, they're trying to advance their career in the DOJ. And the DC Council and the Mayor have no oversight role over the office whatsoever, *and* they can't create one, because Section 602(a)(8) of the Home Rule Act explicitly prohibits the Council from legislating on the duties or powers of the US Attorney or the US Marshal.

Ninety-three percent of local prosecutors in this country are directly elected by the communities they serve. Even the US Territories have local prosecutors. DC doesn't.

This is the seat-of-government tension taken to its logical extreme. The founders wanted federal control over the capital's legal system to ensure the federal government could protect itself. Fine. But the result is that the residents of DC have less say over who prosecutes crimes in their neighborhoods and who judges their disputes than the residents of literally any other American locality.

Emergency Control of Police

Section 740 of the Home Rule Act. The President of the United States can take control of the Metropolitan Police Department whenever he determines that "special conditions of an emergency nature exist which require the use of the Metropolitan Police force for Federal purposes." He has to notify the chairs of the relevant House

and Senate committees in writing within 48 hours, and Congress has to approve the action within 30 days if it's in session. But the President acts first and gets permission later.

Your city's police department, paid for by your taxes, controlled by your mayor, can be commandeered by the President when *he* decides it's necessary. This is the Pennsylvania Mutiny provision, updated for 1973. And no, there is no equivalent provision for any city in any state. Governors can call up the National Guard. The President can federalize the National Guard. But the President cannot pick up the phone and take command of the NYPD or the Chicago PD or the LAPD. Only DC's police force has this feature, because DC isn't in a state, and the plenary power means Congress (and by extension, the President, through this delegation) has authorities here that don't exist anywhere else.

Oh, and the DC National Guard? Also under federal control. The Mayor can't deplete it. Only the President can. Every other governor in the country can call up their state National Guard. DC's mayor cannot.

That one became ... newsworthy.

Conclusions

Why. The hell. Did I do this to myself?

Love, of course.

I wrote this post because I thought "hey, Congress 202, that's funny," and then spent almost two years realizing how little I know about this place. And I'm from here. I work in Congress. I have more reason than most people to understand half of this stuff and I didn't understand any of it when I started.

I put all this time and effort into this post because every time I meet someone and I'm from DC and they say "oh like actually" and I say "yes" and they say "there's no

lot of you,” or “wow I’ve never met someone really from the city” or “y’all sure are r I don’t know how to follow that up. Because on the one hand, all I can think is “ma you don’t get out much, there’s hundreds of thousands of us, there’s more of us tha people in Wyoming or Vermont” and then I realize nobody I went to high school wi is my coworker. But I also have no leg to stand on when I’m as much a part of the problem as anybody else.

You can’t oversee things you overlook, and that’s a problem at the scale of the Congress itself, but it’s also a problem at the individual level. Yeah, maybe you can t me what’s going on with whatever major news story, or you can quote the entire discourse around the French pension problem, Japan’s demographic collapse, China hollow industrial policy, or even the US’ inability to pass a major healthcare reform But do you know who’s in charge of the pipes underneath your house? Do they know you?

I don’t have a clean ending to all this. I’m never going this off the deep end again. B don’t think there’s any way that I can.

With everything that’s happened in DC since Trump got back in office all I can thi is how little I trust these fucking voters to make a good decision, let alone the right decision. And there’s no way I’m getting the chip off my shoulder when the Preside a dick just to be a dick like these guys I kept reading about, trying to score points w the dumbest part of the country.

And I don’t believe expanded home rule is the solution, just look at every Mayor we elected after Walter Washington. Retrocession especially isn’t, that’s a ploy from th Republicans if I’ve ever seen it.

Maybe at the end of the day, the thing we need are the characters from the story I ti to tell. Bowen, the first McMillan, Shepherd, Hobson, Carliner, Spingarn, Washingt Fauntroy, shit even Johnson and Nixon. People who committed themselves to solvi

problem, not just relying on a mass of “everybody,” individuals who took things into their own hands.

I swear, next time I’m writing about Committees.

I swear

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